

AGREEMENT

Between

**SUNRISE HOSPITAL AND MEDICAL CENTER &
SUNRISE CHILDREN'S HOSPITAL**

and

**SERVICE EMPLOYEES INTERNATIONAL UNION
Local 1107**

(Professionals)

October 3, 2025

Through

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AGREEMENT

ARTICLE 1 THIS AGREEMENT IS MADE AND ENTERED INTO BY AND BETWEEN SUNRISE HOSPITAL AND MEDICAL CENTER AND SUNRISE CHILDREN'S HOSPITAL (HEREINAFTER REFERRED TO AS THE "HOSPITAL" OR "EMPLOYER") AND NEVADA SERVICE EMPLOYEES UNION, SEIU LOCAL 1107 (HEREINAFTER REFERRED TO AS THE "UNION"). ABSENCE FROM WORK

1.1 Employees shall report any absence from their scheduled shift to their manager (or other member of supervision designated to receive such notice by the manager) three (3) hours in advance of the scheduled starting time of their shift, unless an emergency, clearly beyond the control of the employee, makes it impossible to do so.

1.2 Whenever an employee is absent due to personal illness or injury for three (3) or more successive shifts, the Hospital may require that the employee provide a physician's certificate confirming an illness, the dates of care, and the date the employee is expected to be sufficiently recovered to return to work. Such certification may also be required for a single day of absence, whenever an employee has received a written warning under the attendance policy during the prior six (6) months, or in the event of circumstances surrounding the absence which raise reasonable questions as to the validity of the absence. Employees shall have seven (7) days to obtain and produce such certificate if requested. The Hospital reserves the right to require a fitness-for-duty certification from a physician whenever, in the good faith judgment of the Hospital, there is a question as to the fitness-of-duty of an employee seeking to return to work following an absence due to illness. The Hospital also may require fitness-for-duty examinations in circumstances permitted under Federal law or regulation, *i.e.* the examination is job related and consistent with business necessity. If the Hospital removes an employee from his or her scheduled shifts pending a fitness-for-duty examination, the affected employee will be placed on paid administrative leave (at straight time pay) pending the examination, provided the employee will not be paid for any delay caused by the employee or the examination concludes the employee was not fit for duty.

ARTICLE 2 ACCOMMODATION OF DISABILITY

In the event the Hospital, in order to comply with the Americans with Disabilities Act (ADA), restructures the job duties of a bargaining unit position, or permits an employee to transfer to a vacant bargaining unit position outside of the transfer procedure described in Article 48, in order to accommodate the disability of an employee or job applicant, such action shall not be a violation of this Agreement unless the Hospital's actions are shown to have been taken in bad faith or without any supportive documentation from a practicing physician attesting to and verifying the existence of any disability creating the need for the accommodation, whether or not such accommodation is subsequently found not to be required by state and federal law. The documentation requirement will not necessarily apply in instances where an employee or job applicant has a disability which is self-evident, *e.g.*, blindness, missing limb, *etc.* The Hospital will

meet and confer with the Union concerning the need for making an accommodation requiring waiver of some provision of this Agreement before implementing such accommodation.

ARTICLE 3 ATTENDANCE

3.1 All staff are expected to maintain regular and predictable attendance to meet performance requirements.

3.2 The purpose of this policy is to establish consistent attendance standards and the consequences for failing to meet expectations.

3.3 Definitions.

Scheduled Absence – Absence from work which has been approved by the employee's supervisor at least 23 hours prior to the beginning of the absence.

Unscheduled Absence – Absence from work which is not a scheduled absence.

Standard Occurrence – An unscheduled absence of one shift or the first three consecutive shifts will count as one occurrence if the required notification is given (see notification definition below).

Enhanced Occurrence – Extra occurrences added to a Standard Occurrence.

A. Purpose: The purpose of applying Enhanced Occurrences is to encourage attendance on days that have been identified as high call out days because of an identified event or holiday.

B. Applicability:

i. The Enhanced Occurrences will apply in the following situations:

a. When the Unscheduled Absence occurs on a Holiday identified in Article 14 or a date immediately before or after a Holiday, or

b. When an Unscheduled Absence occurs on one of nine (9) days identified by the Hospital at least sixty (60) days in advance.

C. Calculation: To determine if Enhanced Occurrences apply, it will first be determined if a Standard Occurrence applies. If a Standard Occurrence applies, the first Enhanced Occurrence event connected to the Standard Occurrence will result in two occurrences and each subsequent Enhanced Occurrence connected with the same Standard Occurrence will result in one occurrence. However, the total number of occurrences for absenteeism that can be applied to a single Standard Occurrence

even in connection with a Holiday identified in Article 14 is four (4) and in all other events is three (3).

If an employee reports to work but leaves prior to completing one-half of the shift without having received approval for the time off at least 23 hours prior to the time he or she leaves, the employee will be charged with one occurrence.

In the event an employee leaves work after having completed one-half of the scheduled shift without the necessary 23 hours' approval, the employee will be charged with only one-half of one occurrence if the employee reports for work as scheduled for his or her next shift.

Otherwise, the employee will be charged with one (1) occurrence.

Excused Absences – Employees who are absent for more than three (3) consecutive shifts must apply for a leave of absence consistent with the Hospital's leave of absence policy. Absences due to approved leaves of absence, on-the-job injuries qualifying for workers' compensation, emergency medical procedures, jury duty, supervisory approved shift trade, bereavement leave, and absences from work due to symptoms of seasonal influenza (proper documentation may be required) occurring during any period when the Hospital has requested in writing that employees not attend work if they are feeling such symptoms, are not counted as occurrences.

Occurrence of Tardiness - Failure to clock in at the employee's home department or designated location within 5 minutes of scheduled reporting time and report to work immediately thereafter counts as one-half occurrence.

Notification - Requests for time off must be made in accordance with the Hospital's procedures for requesting and documenting requests for such time. When an employee must be absent from work, the employee must call the supervisor as soon as possible, in no event less than three (3) hours prior to the beginning of the shift. A call to anyone other than the supervisor or designated individual is not proper notification. Failing to properly notify the supervisor (or designee) three (3) hours prior to the beginning of the shift will result in the employee being charged with one occurrence in addition to any occurrences for the absence.

Notification of inability to report for work as scheduled must be made daily unless the employee has previously advised his/her supervisor that his/her physician has advised him/her of the need to remain out of work for a specified period of time, in which case the employee must forward the physician's statement confirming the need to remain out of work to his/her supervisor as soon as possible. If discipline is given and the employee requests a review of the discipline, the Hospital will rescind such discipline if the employee can prove through some objective evidence that, due to no fault of the employee, it was not possible to provide the notification required in this Section and that he/she did provide notice at the first available opportunity.

3.4 No Call / No Show.

An employee who fails to notify the supervisor (or designee) prior to the beginning of the shift and who fails to clock in and report to work within the first two (2) hours of the shift is a no call/no show and will be charged with three (3) occurrences. A no call/no show on two (2) occasions in a twelve (12) month period will result in termination, unless the employee is absent due to hospitalization and is unable to notify the Hospital.

3.5 Disciplinary Procedures.

Occurrences shall be counted in rolling twelve (12) month periods.

- Five occurrences within a twelve (12) month period will result in a coaching session.
- Six occurrences within a twelve (12) month period will result in a first written warning.
- Seven occurrences within a twelve (12) month period will result in a final written warning.
- Eight occurrences within a twelve (12) month period will result in a two-day unpaid suspension.
- Nine occurrences within a twelve (12) month period will result in termination and will constitute just cause for discharge.

Levels of discipline may be skipped in the event that an employee is tardy more than once within a seven-day period. For example, an employee with five (5) tardies in the last twelve (12) months is tardy on Saturday and is tardy again the following Monday, and these constitute the sixth and seventh occurrences of tardiness in a twelve-month period, the appropriate level of discipline would be a two day suspension (8th occurrence level). In addition, twelve (12) instances of tardiness in a twelve (12) month period will result in termination and will constitute just cause for discharge.

3.6 Pattern-based discipline.

An employee's record will be reviewed periodically by the supervisor for-

- number of absences
- reasons for absence
- patterns of absence

An employee who demonstrates a pattern of absence - absence generally on Monday or Friday (or the employee's first or last scheduled workday in the week), the day after payday, or in conjunction with holidays, or an employee who is regularly absent shortly after an occurrence has dropped off his/her record will receive a first written warning when the supervisor sees the pattern emerging. Continued absences in the pattern will result in a final written warning and then

termination. Absences during the probationary period may result in discharge without regard to this Article.

The Hospital generally will assign occurrences and issue discipline in a progressive manner. However, the Hospital may issue accelerated discipline, up to and including termination, in cases of attendance abuse, such as for example pattern-based absences. Pattern-based absences may include, but are not limited to, absence generally on Monday or Friday (or the employee's first or last scheduled workday in the week), the day after payday, or an employee who is regularly absent shortly after an occurrence has dropped off his/her record.

If an employee is absent on a shift for which PTO was requested other than pursuant to the Round One, Two and Three process as set out in Sections 30.7.4 or 30.7.5, it shall count as a total of two (2) occurrences.

Absences during the probationary period may result in discharge without regard to the Article.

ARTICLE 4 BEREAVEMENT LEAVE

If a death occurs in an employee's immediate family, an allowance is made for time off with pay for up to twenty-four (24) hours for full-time employees and for up to twelve (12) hours for part-time employees during the thirty (30) days following the date of death.

Immediate family is defined as a spouse, parent, step-parent, legal guardian, grandparents, grandchildren, mother-in-law and father-in-law, children, step-children, legal ward, brother (including in-law), sister (including in-law), son-in-law, daughter-in-law, a domestic partner established pursuant to Nevada Revised Statutes 122A.100, and such domestic partner's relatives. If an employee experiences a miscarriage, stillbirth or similar outcome of a fetus, bereavement leave is available to the parents.

Bereavement pay will be at base hourly wage with no premium pay. It will not be counted as hours worked.

Employees may request additional days of bereavement leave. If the employee has PTO available, the employee must utilize PTO for these additional days of bereavement leave.

ARTICLE 5 CALL OFF PROCEDURE

5.1 Call Off Decisions.

The Hospital's staffing patterns are variable. Fluctuations may result in employees covered by this Agreement being asked to delay their report time, being sent home from work prior to completion of their shift, or the cancellation of a shift that has been scheduled, hereinafter referred

to as “Called Off.” While the parties recognize that such variability is unavoidable, the Hospital will make every reasonable effort to avoid Call Offs.

Disputes arising under Section 5.1 (including those relating to the need for any Call Off and/or whether the Hospital has made reasonable efforts to avoid Call Offs) shall not be subject to the grievance and arbitration procedure of this Agreement. However, either party may, within ten (10) days of any Call Off, request the assistance of a mediator from the FMCS or other mutually agreed upon neutral third party to assist the parties in resolving the issue(s).

5.2 Call Off Mechanics.

If an employee is asked to delay the employee’s report time, the employee will not be called off for the remainder of the shift unless the employee goes On Call when told to delay the employee’s report time.

When the Hospital determines that a Call Off is necessary, the Call Off shall apply to the classifications affected in the unit and shift in which the Call Off is taking place in the following order, by seniority, so long as the remaining employees are fully competent to care for the Hospital’s actual or anticipated patients or perform the services needed:

1. Agency and Travelers (who have not been provided their guaranteed number of shifts);
2. VSP on overtime or other premium pay status;
3. Part-time on overtime or other premium pay status;
4. Full-time on overtime or other premium pay status;
5. VSP;
6. Solicited volunteers (the manager may choose to solicit volunteers at any earlier step of the call off procedure); and
7. Part-time and full-time.

For purposes of this Article, the ER at Boulder’s Edge is considered a separate unit.

5.3 Employees Called Back from Call Off.

Employees called back from Call Off will be called in the reverse order of the above.

5.4 Use of Unpaid Time or PTO for Call Off.

A full-time or part-time employee who is Called Off may use voluntary unpaid leave or Paid Time Off at the employee’s discretion.

5.5 Maintaining Contact.

Once an employee is Called Off, the employee shall not be required to maintain contact and availability with the Hospital for the remainder of the shift. This does not preclude the employee from volunteering to be placed On Call.

ARTICLE 6 CHANGE OF OWNERSHIP

It is the intention of the Hospital to fully observe all applicable federal and state statutes which relate to its obligation to the Union and to the employees in the bargaining unit in the event of the sale, transfer, assignment or closure of the Hospital's facilities. The Hospital agrees to provide the Union with notice of any such sale, transfer, assignment or closure of the Hospital's facilities to the extent required by federal or state laws. Upon the Union's request, the Hospital will meet with the Union to engage in good-faith bargaining over the impact of such changes as required by law.

ARTICLE 7 CHARGE/RELIEF SUPERVISORY DIFFERENTIAL

Medical Technologists, Sr. Medical Technologists, Speech Language Pathologists, Occupational Therapists, Physical Therapists, and Clinical Pharmacists, when assigned by the Hospital to substitute as charge or relief supervisor for a unit, will receive a differential of five percent (5%) per hour for all hours worked in such capacity. The Hospital shall have absolute discretion as to whether to assign any qualified employee such duties on any given shift or unit and as to which employee will be given the charge or relief supervisor assignment on any given day. Charge or relief supervisor assignments may be mandatory. However, if an employee assigned to charge or relief supervisor duty believes that he/she is not fully qualified to perform in that capacity, the employee will accept the assignment and perform to the best of his/her ability, up to their level of competency, consistent with his/her licensure or certification and applicable law and regulation.

ARTICLE 8 COMPLETE AGREEMENT

It is acknowledged and agreed that in the course of negotiations preceding the execution of this Agreement, matters and issues of interest to the Union, the employees and the Hospital pertaining to wages, hours and other terms and conditions of employment were fully considered and negotiated, that each party was afforded the unrestricted right to pursue and discuss proposals pertaining to such matters, and that the understanding and agreements arrived at by the parties during the course of said negotiations are fully set forth in this Agreement. This Agreement constitutes the entire Agreement between the parties hereto and supersedes all previous agreements, commitments, or practices, whether oral or written, unless expressly stated to the contrary herein.

ARTICLE 9 DISCIPLINARY ACTION

The Hospital may suspend, discharge, or otherwise discipline an employee for just cause.

The Hospital in its discretion may utilize progressive discipline, including written warnings, final written warnings and suspensions.

Employees may have a Union Steward present when they are questioned by management concerning a matter which the employee reasonably believes may result in his or her discipline, and in the event that the employee is being issued discipline. If the Union Steward of employee's choice cannot be made immediately available at the time of the meeting due to operational needs, the employee will be given up to an hour to identify an alternate steward who is available. If an available alternate steward has not been identified within an hour, an investigatory meeting may proceed without further delay if circumstances are such that there is an immediate need to proceed with the investigation. So long as an employee receives at least two (2) hours' notice of the need for a meeting to administer discipline, the meeting will not be delayed beyond the end of the shift due to the unavailability of a steward.

Any written warning, suspension or other discipline of a non-probationary employee will be subject to the grievance and arbitration provisions of this Agreement. Coaching sessions, documented or otherwise, are not considered discipline and therefore are not grievable. A Coaching session will be grievable as part of any grievance over a higher level of discipline issued for the same or similar conduct.

The arbitrator shall have no authority to modify or alter the discipline or penalty imposed by the Hospital unless it is established by a preponderance of evidence that there was not just cause for the discipline. In no event may the arbitrator simply substitute his/her judgment for that of the Hospital.

Disciplinary actions may be considered in determining the appropriateness of progressive discipline for a period of twelve (12) months from the date of discipline. However, final written warnings and unpaid suspensions may be used as the basis for further discipline for a period of two (2) years in the event of a recurrence of conduct reasonably similar to that for which the final written warning was issued. Further, prior incidents of sexual harassment or harassment forbidden by law, which do not lead to termination, may be considered in connection with determining discipline for any subsequent similar conduct without limitation. Coaching sessions, documented or otherwise, and disciplinary actions that are "expired" as described above may be used to establish an employee's knowledge of rules, policies, or expectations.

If the discipline is overturned through arbitration, or is otherwise conceded by the Hospital to have been issued without just cause, the employee's personnel file will be purged of all references to such discipline.

ARTICLE 10

DISTRIBUTION OF UNION LITERATURE

10.1 Distribution of union literature on Hospital property will be limited to distribution by Union Staff Representatives and Hospital employees on their non-working time in employee break rooms and employee lounges and posting on designated union bulletin boards. Union literature will not be distributed in the cafeteria, lobbies, or parking lots, except as set forth below:

10.1.1 Union literature may be handed out by Union Staff Representatives or Hospital employees on their non-working time in parking lots where employees are permitted to park.

10.1.1.1 Union literature may be handed out by no more than two (2) Union Staff Representatives or employees on their non-working time at entrances to the Hospital, other than the Main entrances to the adult and children's Hospital and the ER at Boulder's Edge.

10.1.1.2 Union Staff Representatives and employees on their non-working time may also give Union literature to employees who request such literature in the cafeteria, but will not set literature out in the cafeteria (except for the table at which the Union Staff representative or employees are seated).

10.1.1.3 Union Staff Representatives and employees may distribute union literature to employees on their non-working time at union meetings held in rooms made available to the union for such meetings.

10.1.2 A copy of the literature being distributed will be delivered to the Director of Labor Relations at the time of the distribution. All literature distributed by the Union and/or the Hospital will comply with the provisions of Article 27.

ARTICLE 11 DRUG AND ALCOHOL POLICY

11.1 The Hospital will follow its existing drug testing policy, which is available to employees on the HR Answers portal. The Hospital shall have the right to amend the policy from time to time. The Hospital shall have no obligation to bargain over the decision to amend the policy with the Union, but shall provide the Union the amended policy at least thirty (30) days in advance of its effective date and shall bargain the effects of the amendments with the Union during the thirty (30) day period prior to the effective date.

11.2 Consistent with the Hospital's Drug and Alcohol Policy, the employee shall be advised of his/her right to representation at the time the request for testing is made. The Hospital will not unreasonably refuse a request to release a Union Steward to advise and represent the employee. However, if a steward is not immediately available (within thirty (30) minutes), consistent with Article 9, the employee will not be required to answer any questions concerning the matter (except for filling out the pre-test disclosure, and the Consent To Testing forms), but the testing will not be delayed.

ARTICLE 12 GRIEVANCE AND ARBITRATION

12.1 Definition of Grievance that is Subject to Arbitration.

A grievance subject to arbitration is a dispute or disagreement involving the interpretation, application or compliance with specific provisions of this Agreement or a dispute or disagreement concerning whether or not discipline including discharge was for just cause. The Union may file a grievance on behalf of one or more bargaining unit members.

12.2 Time Limits, Representation and Witnesses.

All grievances must be presented at the proper steps in accordance with the time limitations noted at the various Steps. Failure to adhere to these time limitations shall render the grievance null and void and it may not be pursued further, however, failure of Management to respond in a timely manner will not bar the grievance from being presented at the next step of the procedure. Employees may be represented by a Union Steward from the bargaining unit and/or a Field Representative at any step of the grievance procedure. Witnesses for either party may attend a grievance meeting, so long as direct presentation of the witness(s)' information or testimony at the meeting is deemed relevant and necessary by agreement of the parties. All time limits in this Article exclude weekends and holidays and may be extended by written mutual agreement of the parties.

12.3 Grievance Procedure.

12.3.1 Step 1. A grievance shall be filed in writing with the Director of Labor Relations or his or her designee within fifteen (15) days of the date of the event giving rise to the grievance or of the earliest date the grievant, the Union, or a Union Steward knows or should have known of the facts giving rise to the grievance. The grievance shall be submitted on the Grievance Form set out in Appendix B. Failure to include all information called for on the form will not preclude consideration of the grievance. However, if the Hospital believes there has been a failure to provide the information called for in the form, it shall promptly notify the Union in writing of this lack of information and processing of the grievance will be suspended until the form is properly completed and resubmitted. Any monetary liability shall be suspended from the time of notification until such time as the information called for in the form is provided to the Hospital in writing. The Hospital and the Union will conduct a meeting between the grievant and the employee's Department Manager/Director or designee and/or the Director of Labor Relations or his or her designee and a Shop Steward and/or Field Representative within ten (10) days. A written response to the grievance will be provided to the Union Steward within fifteen (15) days of receipt of the Step I grievance with copies to the grievant and the Field Representative. Nothing in this Section 12.3.1 precludes the employee from discussing and/or resolving an issue informally with management before filing a grievance.

12.3.2 Step 2. If the grievance is not resolved at Step 1 and the Union wishes to advance the grievance, the Union must request in writing that the grievance be moved to Step 2 by submitting such request to the Director of Labor Relations or his or her designee within fifteen (15) days from the date the Step 1 response was received by the Union Steward. Within fifteen (15) days of receipt of the appeal to Step 2, the Hospital and the Union will conduct a meeting between the grievant, the Shop Steward and/or Field Representative, and the appropriate member of the Senior Management Team, the Director of Labor Relations or his or her designee, and any other members of management desired

by the Hospital, to hear the grievance. The COO (or designee) will respond to the grievance in writing to the Field Representative within fifteen (15) days after the Step 2 meeting.

12.3.3 Step 3 - Arbitration. If the grievance is not resolved on the basis of the Step 2 response, then within thirty (30) days from the date the Step 2 response was received by the Field Representative the grievance may be appealed to arbitration by the Union notifying the Director of Labor Relations or his or her designee for the involved Hospital in writing of its intention to arbitrate the dispute. At the same time, the Union shall request within seven (7) days of such notification, that the Federal Mediation and Conciliation Service submit to each of the parties a panel of seven (7) arbitrators having hospital arbitration experience. The arbitrator shall be selected by each party alternately striking names until only one (1) remains. Either party may reject one (1) panel in its entirety. To determine which party strikes the first name, the parties shall flip a coin. Management shall respond to a Union request to strike a panel within ten (10) calendar days of receipt of a written request to do so, communicated directly to the Director of Labor Relations or his or her designee, provided that the Hospital has had the panel for at least fourteen (14) calendar days.

12.3.4 Voluntary Mediation. Within seven (7) calendar days of the Union's appeal to arbitration the Union may request the Hospital to participate in mediation. If the Hospital agrees, the parties shall request the appointment of a mediator from the Federal Mediation and Conciliation Service. In no event will such mediation delay or alter the scheduling or conducting of the arbitration hearing.

12.3.5 During the grievance procedure, either party may request the other party to produce evidence relevant to the grievance that is within the party's possession or control. If either party requests the production of evidence requiring review and/or copying of numerous documents, (other than documents from an employee's personnel file covered by Article 33 Personnel Files), the party reviewing or copying such documents may charge the requesting party reasonable clerical and copying expenses. The arbitrator will not consider any evidence from a party which failed to produce such evidence in support of that party's position during Steps 1 or 2 of the grievance procedure in response to a reasonably specific written request for production of such evidence.

12.3.6 Limits on the Arbitrator. The arbitrator shall have no power to: add to or subtract from, or to modify any of the terms of this Agreement or to arbitrate any matter after this Agreement has expired other than matters which arose prior to the time of expiration of the Agreement. As to matters involving the merits of the case, the parties will jointly request that the arbitrator issue his decision within thirty (30) days of the arbitrator's receipt of the parties post hearing briefs. The parties will notify the arbitrator of this request at the time of selection of the dates for the arbitration hearing. Fees and expenses of the arbitrator and reporter, if any, and expenses of the facilities at which the hearing is held shall be shared equally by the parties. However, each party shall bear its own expenses of representation and witnesses.

ARTICLE 13

HEALTH AND WELFARE/FRINGE BENEFITS

13.1 Current Plans.

The Hospital currently offers participation in the Medical and Vision Spending Accounts, Day Care Spending Account, and the HCA 401(k) plan, Life and AD&D insurance, and Long Term Disability insurance, Met Life Dental Plan, Aetna POS Medical Plan, and in the HCA Smart Care PPO (with optional medical and prescription riders).

13.2 Change in Plans.

The Hospital will offer participation in the current Aetna POS plan (or an equivalent plan). For purposes of this Article “an equivalent plan”, means a plan with a maximum deviation of no more than 2% of the total actuarial value, unless the parties agree, after bargaining, to a different actuarial value.

The Hospital agrees to continue to offer participation in the HCA Smart Care PPO (with optional medical and prescription riders), in the HCA 401(k) Plan, in the Life Insurance and Long Term Disability Insurance Plans, and in the Medical and Vision and Day Care Spending Accounts, on the same basis as participation in such plans is offered to all hourly non-bargaining unit employees at the Hospital (including full-time and part-time eligibility requirements). If changes are made in the HCA 401(k) Plan, the Life Insurance and the Long Term Disability Insurance plan, the Medical and Vision and Day Care Spending Accounts, or in the HCA Smart Care PPO, or if changes in the Aetna - POS are imposed by the plan provider, which result in reducing the overall value of the plan to the plan participants, the Hospital will give the Union at least 60 days’ notice of such changes, and will, upon written request received within thirty (30) days of notification to the Union, bargain with the Union over the effects of the changes on the bargaining unit members. However, there shall be no obligation to delay making changes in the plan while such bargaining takes place.

13.3 Contribution Rates.

The Aetna POS will continue to be free for full-time employees and their dependents and for part-time employees with three (3) years of service and their dependents. The Hospital will continue to pay ninety percent (90%) of the cost of individual coverage and eighty-five percent (85%) of the cost of individual plus dependent coverage (based on premiums or premium equivalents) for medical coverage under the Aetna POS for part-time employees with less than three (3) years of service and 90% of the cost of individual coverage and eighty-five (85%) of the cost of individual plus dependent coverage under the HCA Smart Care Base PPO.

The Hospital will continue to pay the full cost of the existing Life & AD&D benefit, through the term of this agreement. The Hospital will also continue the existing employee discount for hospital services at Hospital.

13.4 CorePlus Benefits, HCA Domestic Partner Benefits, and HCA Employee Health Assistance Fund.

The Hospital shall continue to offer participation in the CorePlus Benefits, in the HCA Domestic Partner Benefits, and in the HCA Employee Assistance Fund, and the HCA Retiree Health Plan to full-time and part-time employees at the time of hire on the same basis as participation is offered to non-bargaining unit employees. The parties understand that, given the national nature of these plans, that the Hospital has no duty to bargain with the Union over any aspect of the plans, including plan administration, changes in the plans, or elimination of the plans.

ARTICLE 14 HOLIDAYS

14.1 Holidays Observed.

The following Holidays are observed by the Hospital:

New Year's Day
Memorial Day
Independence Day
Labor Day
Thanksgiving Day
Christmas Day

14.2 Holiday Worked Premium.

Full-time, part-time, temporary and VSP employees who are required to work on a recognized holiday shall be paid holiday pay of time and one-half their base hourly rate for the hours worked on the holiday. Holiday time begins at 11:00 p.m. the day before the official Holiday and ends at 11:00 p.m. on the day of the official holiday. In order to receive the holiday worked premium, the employee must work at least four (4) or more consecutive hours during the defined holiday hours, unless called off by the Hospital due to lack of work. If an employee can demonstrate they were at the timeclock at the scheduled start of the shift, they will not be ineligible for the holiday worked premium. For purposes of this Section, hours on a shift worked prior to and after a meal period shall be considered consecutive hours.

An employee must take PTO to cover an absence on a holiday (either requested or due to closure of the department) that the employee would otherwise have been scheduled to work. If the holiday falls on Saturday, the observed holiday will be Friday in departments that are scheduled to be open Monday through Friday. If the holiday falls on Sunday, the observed holiday will be Monday for departments that are scheduled to be open Monday through Friday.

Employees will be compensated holiday differential paid at one and one-half times their base rate for hours worked on the "actual" holiday - not the observed holiday.

Holiday differential shall not be an offset against overtime premiums due, but holiday differential shall not be included in the regular rate of pay for overtime purposes.

ARTICLE 15

HOURS OF WORK AND OVERTIME

15.1 Work Week.

A workweek is a period of time consisting of seven (7) consecutive days. Nothing in this agreement shall be construed to constitute a guarantee or entitlement of hours of work per day or per week.

15.2 No Pyramiding.

There shall be no pyramiding of overtime pay. Hours (other than holiday worked hours and transport duty hours) which qualify for a premium of at least time-and-one-half the straight-time hourly rate will not be counted for purposes of determining whether any other hours worked qualify for premium or overtime pay.

15.3 Hours Worked.

Only hours actually worked shall be considered hours worked for purposes of computing overtime pay.

The Hospital shall ensure that an employee who has worked continuously for more than sixteen (16) hours straight will have at least eight (8) hours off before having to return to work as part of the regular schedule. An employee may choose to use PTO for such time as the employee is excused from work on the succeeding shift.

Employees may be required to review, and verify as accurate, their hours worked each pay period.

15.4 Overtime Premiums.

The Hospital will continue to pay overtime pursuant to its current practices.

If an employee is required to attend mandatory meetings or mandatory in-service training sessions during time which is outside of the employee's regularly scheduled shift, the employee shall be paid at the applicable hourly rate, including any applicable differentials, for all time spent in such status. All time or hours spent in such meetings or training shall be considered hours worked for the purposes of computing overtime.

Should there be an insufficient number of volunteers, overtime shall be rotated equitably and fairly among the fully qualified employees in the classification on duty or scheduled to be on duty in the unit at the time the overtime is required.

If an employee works an extra shift or extra hours outside his/her regular schedule and the Hospital finds that it needs to reduce scheduled hours later in the pay period in order to offset the unscheduled hours, it will do so only through voluntary reductions or through the Call Off procedure.

15.5 Rest and Meal Periods.

Patient care needs permitting, employees will continue to receive one (1) thirty (30) minute unpaid meal period as well as two (2) fifteen (15) minute paid rest breaks per scheduled shift of at least eight (8) hours granted consistent with current practice (including scheduling practices) in each work area. The Hospital will make reasonable efforts to permit employees to take their breaks at reasonable intervals, but the parties recognize that in some clinical areas of the Hospital it is not always possible to grant such breaks on any given day. Employees may not leave the Hospital's premises during rest breaks. Employees may leave the Hospital's premises during lunch breaks unless operational needs require that the employee be available for immediate recall to work. Employees wishing to leave the Hospital's premises during lunch must do so with the permission of their supervisor (which shall not be unreasonably withheld) and must clock out and in. Employees may not combine rest periods and/or meal periods without the prior permission of their supervisor. In the event an employee has been directed to remain at his or her work station during a meal period the employee shall remain in paid status. If an employee works an additional four (4) hours beyond his/her regular shift, he/she shall be entitled to an additional paid rest break. Some or all employees may be required to badge, punch, or sign in and out for lunch.

15.6 Reporting Pay.

An employee who is instructed or scheduled to report to work, and who reports to work without prior notice that no work is available, shall perform any work assigned for which the employee is qualified and shall be guaranteed two (2) hours work or pay in lieu thereof at the employee's regular rate of pay.

15.7 Travel Time

An employee who after reporting for his or her scheduled shift is directed to travel to another Hospital work location during the same shift shall be paid for his or her reasonable travel time.

ARTICLE 16 INDIVIDUAL AGREEMENTS

No employee covered by this Agreement shall be compelled or permitted to enter into any individual contract or agreement with the Hospital concerning the conditions of employment set forth herein. However, the Hospital may continue to use sign-on bonuses, scholarship agreements, intern agreements, and course and relocation re-imbursement agreements. It is the intent of the Hospital to enforce the repayment provisions of such agreements uniformly, except that the Hospital may choose not to enforce such obligation in an individual case, based on the amount unpaid, the costs of litigation, and the likelihood of successful recovery.

ARTICLE 17

JOB DESCRIPTIONS

17.1 The Hospital will maintain job descriptions which include general summaries of the job duties of bargaining unit positions. When job descriptions for bargaining unit positions are revised to reflect changes in duties, the Hospital will give the Union at least thirty (30) days advance notice of the changes. If such revisions require the development of significantly higher skills, require additional education or training that will not be provided by the Hospital, or actually require that the employee perform a significantly greater volume of work on a regular basis, the Hospital will, upon request, bargain with the Union to agreement or impasse over the effects of such revisions. However, such bargaining need not be completed before implementation of such revisions.

17.2 In the event that an employee believes that he/she is performing, on other than a temporary basis, the duties of a bargaining unit position other than the position for which the employee is classified, the employee may apply to the Vice President of the Human Resources Department for re-examination of his/her duties and job classification. The Director of Labor Relations or his or her designee, shall respond in writing to such application within thirty (30) days of receipt. If unresolved, the employee, or the Union on behalf of the employee, may initiate grievance proceedings. In such a grievance, the issue for resolution will be which existing bargaining unit classification should be applicable to the employee. Nothing in this Article shall authorize an arbitrator to establish a new or different job classification or require revisions to an existing job classification.

17.3 In the event that the Hospital (as opposed to the government) implements a new requirement for training applicable to incumbent employees, the Hospital will provide or pay for the cost of the training. Time spent in such training will be treated and paid for as hours worked. This does not apply to changes in skill mix requiring different classifications or to continuing educational requirements imposed for licensure or by Medicare/Medicaid or other reimbursement authorities.

17.4 In the event that the government implements a new requirement for training applicable to incumbent employees, the Hospital will, upon request, meet and bargain with the Union over the issue of what, if any, of the costs associated with obtaining the training will be paid for by the Hospital.

ARTICLE 18

JURY/COURT DUTY

18.1 Court Duty.

Time lost from regularly scheduled hours in order to appear for legal proceedings at the request of the Hospital will be paid at the employee's base hourly rate and treated as hours worked for the purpose of calculating overtime. An appearance for legal proceedings on behalf of the Hospital is defined to include, but is not limited to, pre-and post-court preparations, depositions, interviews, questionnaires and investigation, as well as any actual court appearance and testimony.

18.2 Jury Duty.

Full-time and part-time employees will be paid their base hourly rate of pay for time lost from their regular schedule because of required jury duty, pursuant to and consistent with the following:

- A. The employee must show evidence of the summons to the supervisor upon receipt.
- B. If the employee is not selected for jury duty or is released, he/she shall return/report to duty if the employee has been in the jury process for less than four (4) hours.
- C. If a day or evening shift employee is selected to serve on a jury, he/she will not be required to work the day that he/she serves as a juror. If a night shift employee is required to report for jury duty on a day that he/she would have normally worked, he/she will be released from work the night prior to the appearance if the employee so requests, as well as the night shift on the day of the appearance.
- D. Employees will be paid by the Hospital, and will present a copy of their jury duty voucher following jury service to confirm the dates and times of their jury service, and an adjustment, if any, will then be made. Employees may be required to provide confirmation of continued jury duty from the court in the event of extended jury duty (more than one week).

ARTICLE 19 LABOR-MANAGEMENT/PATIENT CARE COMMITTEE

19.1 The parties are in agreement that full cooperation and understanding between the parties and a harmonious relationship will promote efficient performance, which is in the interest of the patients. The parties therefore recognize that matters other than formal grievances may arise which may be appropriate to discuss between management and employees. To this end, a Labor-Management Committee may review, discuss and attempt to resolve issues of mutual concern to the parties, including staffing concerns.

19.2 Meetings may, at the Union's request in accordance with 19.6, be held quarterly, unless mutually agreed otherwise and shall not exceed two (2) hours unless jointly agreed. The Labor-Management Committee established in accordance with this Article shall be comprised of no more than three (3) employer representatives and no more than three (3) union representatives (who shall be employees of the Hospital). In addition to these committee members, one (1) Human Resources representative and one (1) Union Staff Representative may attend the meetings. Each party shall name a spokesperson to coordinate committee activities. It is the intent of the parties that all meetings shall be conducted in a cooperative and professional manner with the aim of addressing matters in a constructive way. It is the intent of the parties that the committee will serve as a forum for attempting to resolve issues that arise in the workplace. The committee will not discuss disciplinary matters, pending grievances, or issues relating to contract negotiations. Discussions in the Labor Management Committee cannot be used as evidence in any grievance, arbitration or other proceeding. This paragraph shall not prevent an employee, the Union or the

Hospital from subsequently pursuing an otherwise grievable issue through Grievance and Arbitration. However, the parties agree this Article is the exclusive means to address staffing concerns.

19.3 Employees on the committee will be scheduled off for the shift on which the meeting is scheduled to take place, and time spent attending meetings shall be paid at the employee's base hourly rate and treated as hours worked for overtime purposes.

19.4 When the committee reaches a mutually agreed resolution of an issue, this resolution will be reduced to writing and signed by the Committee members.

19.5 It is understood that no resolution by the Committee will alter or abridge the letter or the intent of this Agreement.

19.6 Meetings shall be scheduled at least sixty (60) days in advance unless otherwise mutually agreed and the parties' spokespersons shall jointly develop a mutually agreed agenda for each meeting in advance. The Hospital shall, unless in the case of a bona fide emergency, ensure that the Union participants on the Committee identified to the Hospital at the time will be granted leave from duty in order to attend the meeting.

19.7 The parties may agree in advance to invite individuals, other than the members of the Committee, to attend a meeting for the purpose of giving direct information on the issue at hand.

ARTICLE 20 LAYOFF/RECALL

20.1 Reduction in Staff.

20.1.1 Job Security, Indefinite Layoff and Practical Alternatives to Avoid the Need for Layoff.

The Hospital will make every reasonable effort to avoid displacing (*i.e.*, laying off or permanently reducing the hours of) full-time and part-time bargaining unit members. Such efforts may include use of attrition, business growth, job matching, retraining, assistance to employees in identifying other job opportunities in other departments or at other HCA affiliated hospitals, and/or other mutually agreed upon mechanisms to accomplish the goal of avoiding such displacements. However, the parties recognize that there are times when such displacements will occur. When the Hospital determines that it is necessary to displace full-time or part-time bargaining unit employees, it will notify the Union and will, upon request, meet and bargain with the Union at reasonable times during the thirty (30) day period following such notice (unless extended by mutual agreement). The subject of such bargaining will be the need for the layoff and the existence of practical alternatives to avoid the need for the layoff. In the event an individual full-time or part-time employee is subjected to call-off for fourteen (14) consecutive scheduled shifts, the Hospital will, upon request of the Union, meet with the Union to bargain over the need for a permanent layoff or reduction in hours.

20.1.1.1 Disputes Arising Under 20.1.1. Above.

Disputes arising under 20.1.1. above (including those relating to the need for any layoff/permanent reduction in hours and/or the existence of practical alternatives to layoff/permanent reduction in hours) which cannot be resolved through the bargaining process above shall not be subject to the grievance and arbitration procedure of this Agreement but shall instead be subject to the following procedure, which shall be the exclusive method for resolving such disputes under this Agreement.

20.1.1.1.1

If the parties are unable to resolve a dispute through the bargaining process above, either party may request the assistance of a mediator from the FMCS or other mutually agree upon a neutral third party to assist the parties in resolving the issue(s).

20.1.1.1.2

If the parties are unable to resolve their dispute with the help of the mediator within sixty (60) days of the notice of intended layoff/permanent reduction in force, the Hospital may proceed with the layoff/reduction on the 60th day following the notice.

20.1.2 Notice of Layoff and Volunteers.

The Hospital will give affected employees at least two (2) weeks' notice of layoff or two (2) weeks' pay (based on regularly scheduled hours) in lieu of notice, or a combination thereof and will seek volunteers for layoff in the classification, department/cost center and shift affected. If more employees volunteer for layoff than are needed, volunteers will be selected on the basis of seniority.

20.1.3 Temporary/Travelers Reduced First.

Temporary employees and Travelers (whose contracts are terminable on two weeks' notice without penalty; upon signing of this agreement all future traveler contracts will be terminable with two weeks' notice for a layoff) in the classifications to be reduced, shall be laid off before any other employee on the shift and cost center in which the reductions are to take place, provided that the remaining employees are fully capable of performing the available work.

20.1.4 Order of Displacement.

If an insufficient number of staff volunteer for layoff at the time of notification, the least senior employees occupying affected positions in the affected department/cost center and shift will be initially laid-off.

20.1.4.1 Displacement.

An employee who is subject to layoff will have the right to displace:

20.1.4.1.1 A less senior bargaining unit employee in his/her department/cost center, (who has the same or, at the option of the employee, lesser status), provided that the employee is fully capable of performing the duties of the job with no more than ten (10) days of orientation, or

20.1.4.1.2 The least senior employee in the bargaining unit in his/her classification (in the same or, at the option of the employee, lesser status) on the same shift (or on any shift if there is not a less senior employee on the same shift), provided that the employee is fully capable of performing the duties of the job with no more than ten (10) days of orientation.

20.1.4.1.3 In the event that the employee cannot displace the least senior employee in the bargaining unit in his/her classification and shift, because of difference in status or lack of qualifications as set forth above, he/she may continue up the seniority list, until he/she is able to displace a less senior employee.

20.1.4.1.4 In the event of multiple bumps by employees in the same classification the bumps will be executed by the most senior affected employees first.

20.1.4.1.5 The foregoing bumping rights shall not apply to any employee who has a final written warning within the 12 months preceding his/her notification of layoff.

20.1.4.2 Obligation to Apply for Vacant Positions Before Bumping.

Before an employee may bump out of his/her department/cost center, the employee may be required to bid on any vacant positions in his/her classification, status and shift, outside his/her cost center, for which the Hospital believes the employee may be qualified. Selection for such positions will be as set forth in Article 48. In the event the employee is not the successful bidder, he/she may exercise his/her bumping rights provided he/she does so by 5:00 p.m. on the second weekday following the day on which he/she was notified that he/she was not the successful bidder.

20.1.4.3 Bumping into VSP Positions.

Employees who bump into VSP positions shall be treated in all respects as a VSP employee, except that such employees will nevertheless retain recall rights to a status position for 12 months (24 months for employees with five (5) years of service) from layoff as herein provided.

20.1.4.4 Possible Conversion of Per Diem Position to a Benefited Position.

If an employee bumps a VSP employee whom the employee believes to be regularly scheduled to work a regular part-time or full-time schedule, the employee may request at the time he/she seeks to bump into the position that the VSP position be converted to a part-time or full-time position. The position will be so converted if it meets the test for conversion of VSP positions set forth in Article 45 (Status of Employment).

20.1.5 Rights of Bumped Employees.

An employee who has been displaced by a more senior employee will, in turn, have the same options to displace less senior employees as employees initially displaced. Employees who are unable to, or choose not to, displace another employee under the foregoing procedure will be placed on layoff. An employee displaced under the above process who is offered and declines a position in his or her classification, status, and shift (day, evening or night) will be considered to have voluntarily resigned. Once advised of his/her displacement, an employee must exercise displacement rights by 5:00 p.m. on the second weekday following the day on which he/she was advised of displacement and is provided access to a seniority list from which he/she may determine his/her bumping options.

20.1.6 Employees on Leaves of Absence or Vacation.

Employees who are on an approved leave of absence at notification of displacement, will be notified of their displacement by certified mail. Said notification will include a current seniority list and list of vacant bargaining unit positions. The employee must exercise any contractual bumping rights by 5:00 p.m. on the weekday following the day of return, or by 5:00 p.m. on the 10th weekday following delivery or attempted delivery of the certified mail notice of displacement and telephone calls to the employee's telephone number of record, whichever is earlier.

20.2 Recall Roster.

20.2.1

Employees shall be placed on a recall roster for a period of 12 months (24 months for employees with five (5) or more years of service) from the date of layoff, or for a period equal to the employee's length of unbroken service with the Hospital in any bargaining unit position in any of the bargaining units covered by this Agreement, whichever is shorter. An employee placed on the recall roster shall provide and keep updated while on the recall roster, a current address and telephone number where the employee can be reached.

20.2.2 Order of Recall.

Employees on layoff will be recalled to available positions in the classification, department/cost center and shift from which they were laid off in the inverse order of

seniority, provided they are fully qualified to perform the available work with no more than ten (10) days of orientation. A recalled employee must accept recall by 5:00 p.m. on the second weekday following the day on which notification of recall is served (in the case of service by certified mail shall be considered effective three (3) days after delivery or attempted delivery) on the employee and return to work at the Hospital within fourteen (14) days of such service. Notification of recall may be served by direct verbal communication or by written communication by certified mail sent to the employee's address of record. If the employee does not accept recall and return to work within the foregoing time limits, the employee will be considered to have voluntarily resigned. If an offer of recall is accepted, the employee shall be deemed recalled and be removed from the recall roster.

Employees on layoff may apply for other vacancies through the employment center. An employee on layoff applying for a vacancy shall be selected over a non-employee applicant if he/she has the education, skills, experience and abilities required for the vacant position.

20.2.3 Refusal of Offer.

An employee on layoff who declines recall to a position in his or her classification on the shift and in the cost center from which he or she was laid off, or who declines an offer of recall to any available position for which he or she is qualified in the employee's classification on the same shift from which he or she was laid off, will be removed from the recall list and will be separated from employment as a voluntary resignation and any severance payments will be discontinued.

20.2.4 Reduction in Hours.

Nothing in this Article will prohibit the Hospital from implementing a temporary reduction in scheduled hours for employees in a unit or department for a period not to exceed sixty (60) days in order to avoid the necessity of a layoff. In the event of the implementation of such a reduction, traveler (to the extent permitted by their contracts), agency, VSP and temporary employees working regularly scheduled hours on the affected shift in the affected unit or department will have any scheduled hours reduced first, before the hours of regular full-time and part-time employees in the same classification are reduced, provided the remaining employees have the immediate ability to perform the available work. In the event of implementation of such a reduction, full-time and part-time employees affected by the reduction will not have their status reduced for benefit purposes.

20.3 Alternate Arrangements.

20.3.1

Upon mutual agreement, the Union and the Hospital may explore an alternate arrangement regarding a reduction in force and implement such an alternate arrangement for a given reduction if agreement to do so is reached.

20.3.2 Affecting Fewest Number of Employees.

It is the intention of the Hospital, in implementing layoffs, call-offs, or temporary reductions in hours, to affect as few employees as possible, given the Hospital's judgment as to its reasonable operational needs.

20.4 Severance Pay.

20.4.1 Full-time or part-time employees who volunteer (and are selected) for a layoff, or who are laid off pursuant to the provisions of this Article, shall be paid the following severance benefits:

Length of Service	Weeks of Base Pay
At least 91 days but less than 3 yrs	80 hours (2 weeks)
3 yrs but less than 5 yrs	120 hours (3 weeks)
5 yrs but less than 8 years	160 hours (4 weeks)
8 yrs but less than 10 yrs	200 hours (5 weeks)
10 yrs but less than 15 yrs	320 hours (8 weeks)
15 yrs but less than 20 yrs	400 hours (10 weeks)
20 years or more	480 hours (12 weeks)

Severance pay under this subsection shall be paid, based on the employee's status. Severance pay will be paid on a bi-weekly basis. In addition, the Hospital will continue to provide insurance coverage in effect at the time of the layoff at the same cost that was in effect immediately prior to the layoff (except to the extent the cost of such coverage increases during the severance period) to employees who have been laid off or volunteered to be laid off for the same period as the severance pay. All severance entitlement and payments will cease upon the earlier of (1) return to work with the Hospital, (2) fourteen (14) days from the mailing of a written communication (sent by certified mail) of available employment with the Hospital or an HCA-affiliated facility within a 30-mile radius of the Hospital, (3) actual employment by the operating entity of a subcontracted service, or (4) actual employment by an HCA-affiliated facility. This severance pay provision shall not apply in the event of the sale of the Hospital or any service or department in which employees are offered employment with the new owner.

ARTICLE 21 LEAVES OF ABSENCE & FAMILY ILLNESS PAY

21.1 The Hospital will follow its existing Leaves of Absence policies. The Hospital shall have the right from time to time to amend its leave policies, so long as the revised policies are consistent with law. The Hospital shall have no obligation to bargain such amendments with the Union, but shall provide the Union the amended policy or policies at least seven (7) days in advance of its effective date.

21.2 Union Leave.

21.2.1 Eligibility. If an employee is elected or appointed to a position in Local 1107, the employee will be granted a leave of absence not to exceed six (6) months upon request.

21.2.2 The Hospital shall not be obligated to grant more than one such leave in any twelve (12) month period.

21.2.3 Benefits. Health and life insurance benefits ordinarily provided by the Hospital and for which the employee is otherwise eligible, will be continued through the end of the month in which the leave commences. Thereafter the employee may continue insurance benefits by paying the full costs of such coverage. Other benefits, such as PTO and sick leave, will not accrue while the employee is on union leave.

21.2.4 Reinstatement. An employee who returns to work at the end of a union leave of absence will be returned to his or her former position, if available, or will be offered the first available opening in a comparable position for which he or she is qualified. Union leave will not be used, nor will it be granted, for the purpose of participating in attempts to organize employees of an affiliated enterprise.

21.3 Family Illness Pay.

21.3.1 Purpose. To establish guidelines for payment to regular full time and regular part time employees for any one, or more, of the following reasons:

- To care for the employee's spouse; domestic partner (defined by the Summary Plan Descriptions (SPD) for HCA Benefits Plans); son or daughter (as defined by the Family Medical Leave Act and regulations); or parent with a serious health condition;
- The birth of a son or daughter, and to care for the newborn child;
- The placement with the employee of a son or daughter for adoption or foster care, and to care for the newly placed child.

An employee may not receive payment under both Short Term Disability and the Family Illness Policy for the same FMLA qualifying event.

21.3.2 Policy. Employees may be paid for up to fourteen (14) calendar days based on the employee's HRIS Norm Hours. Absences within the employee's first continuous week of HRIS Norm Hours (within seven (7) calendar days) will be considered a waiting period to access Family Illness Pay. Employees are expected to utilize PTO hours to cover their absences during this waiting period. If the employee does not have sufficient PTO hours, the time off will be unpaid.

Family Illness Pay will be paid at the following percentage of an employee's base rate of pay and completed years of service:

0-4 Years – 60% of Base Rate

5-9 Years – 80% of Base Rate
10+ Years – 100% of Base Rate

Compliance to FMLA certification will be required to support a request for payment. Based on the FMLA certification, employees may be paid up to two (2) weeks' time off based on their HRIS Norm Hours, not to exceed eighty (80) hours per calendar year. Family Illness Pay may be used in increments for varying events; however, the one (1) week waiting period will be applied to each event and prior to accessing Family Illness Pay.

The employee may, with prior supervisory approval, take additional time off. Any additional time off will be deducted from the employee's PTO balance. If the employee does not have sufficient PTO to cover the extended time off, the time will be unpaid.

ARTICLE 22 LIABILITY INSURANCE

The Hospital will continue to carry medical malpractice insurance coverage on all employees involved in patient care, which provides coverage for employees when they are acting in the course and scope of their employment (as defined in the policy of insurance) with Sunrise Hospital, from the first day of employment.

ARTICLE 23 LISTS OF EMPLOYEES

23.1 On a monthly basis, the Hospital shall supply the Union with a list of all current employees covered by this Agreement, with classification, name, cost center, address, shift (when available from Hospital information systems), phone number, employee identification number, wage rate, and date of hire.

23.2 The Union will indemnify and hold the Hospital harmless against any claim or obligation which may be made by any person by reason of providing employee data to the Union, including the cost of defending against any such claim or obligation.

23.3 On a monthly basis, the Hospital shall additionally supply the Union with a list of new hires and a list of terminations, with the same information as above for each employee.

ARTICLE 24 MANAGEMENT RIGHTS

24.1 Except as modified, delegated or granted in this Agreement, the Hospital retains the exclusive right to manage the operations of the Hospital and to direct its working forces. Among

those exclusive rights, but not limited thereto is the right to hire, transfer, promote, discipline, suspend or discharge for just cause; assign and supervise employees; to determine and change starting times, quitting times and shifts, and the number of hours to be worked; to determine staffing patterns, to install security devices for the protection of persons and property, to determine policies and procedures with respect to patient care; to determine or change the methods and means by which its operations are to be carried on; to carry out all ordinary functions of management; provided, however, that such rights shall not be enforced contrary to the provision of this Agreement.

24.2 The parties agree that, except to the extent this Agreement specifically provides otherwise, the Hospital will have no duty to bargain with the Union over actions of the Hospital, not prohibited by this Agreement, which have some effect on bargaining unit employees, unless such actions directly affect the job security of bargaining unit members. In the event the Hospital does take some action, not prohibited by this Agreement, which directly affects the job security of bargaining unit members, or if the Hospital intends to install security devices, the Hospital will, upon request, bargain with the Union about whether such action will be taken over a period not to exceed thirty (30) days from the date the Union was notified of the proposed action or became aware of the proposed action. If the parties are unable to resolve the matter through bargaining during such thirty (30) day period, the Hospital shall have the right to move forward with its action without further bargaining.

Nothing in Section 24.2 is intended to create any additional bargaining obligation which would not otherwise exist under other provisions of this Agreement.

ARTICLE 25 MANDATORY OVERTIME

The parties agree that safe and quality patient care is the determining factor for working overtime hours, but that mandatory overtime should be utilized only as a last resort. To the extent that time permits, the Hospital will make reasonable efforts to exhaust other alternatives (for example, including but not limited to, efforts to utilize qualified managers, volunteers from the staff or resources outside the Hospital, and agency, temporary, or travelers) before requiring mandatory overtime.

Emergency is defined as an unanticipated or unavoidable situation that has been determined to significantly impact patient care or the delivery of essential healthcare services which requires immediate action. In emergency circumstances where mandatory overtime is required, the Hospital may require employees to remain on duty.

No employee will be required to work more than 16 consecutive hours. Should an employee volunteer to work more than 16 consecutive hours, the employee may request to delay the employee's start time for the employee's next shift up to eight (8) hours from the time the employee clocked out. The Hospital will not unreasonably deny such request. However, such delay will not cause the end time for the originally scheduled shift to be extended unless agreed to by the Hospital.

Volunteers or employees required to remain on duty due to an emergency will be paid double time for the mandatory overtime hours worked, regardless of whether the employee has exceeded 40 hours in the workweek.

ARTICLE 26

MISCELLANEOUS BENEFITS

26.1 The parties agree that for the term of this Agreement, the following benefits and programs shall remain in effect without revision or modification except as set forth below.

26.2 Free Parking.

The Hospital shall provide parking for employees, without charge. The parties agree to bargain over the effects of any changes to the location of parking.

26.3 Cafeteria Discounts.

The Hospital shall continue to offer employees free coffee and at least a 20% discount off visitor prices in the cafeteria.

26.4 Hospital Services Discounts.

The Hospital will continue the existing employee discount for hospital services at Sunrise Hospital.

26.5 The parties agree that the following benefits and programs available through the Hospital's parent company will continue to be offered to the extent and on the same basis as they are offered to other hourly employees of the Hospital. However, administration, modification, or elimination of these programs is not subject to the grievance and arbitration provisions of this Agreement. The Hospital shall provide a sixty (60) day notice of any change made to these programs by the Hospital or its parent company, and the parties agree to bargain over the effects of such change, but such bargaining shall not delay implementation of the change.

1. Banking Financial Services and Education Program
2. Day Care Spending Account
3. Medical/Vision Spending Account
4. HCA Scholarship Program
5. Adoption Assistance
6. Direct Deposit
7. Student Loan Repayment Program
8. Tuition Reimbursement Program
9. Child Care Subsidy
10. Employee Stock Purchase Plan
11. Certification Verification & Renewal (HR.ER.041) and Clinical Certification Support Program (HR.ER.070)

ARTICLE 27

MUTUAL RESPECT AND COMMITMENT

The Parties agree to conduct their relationship in a manner that reflects mutual respect and a joint commitment to problem-solving, and in any communications they shall focus on the merits of the particular issue in debate, address differences in a positive manner and not engage in personal attacks or make derogatory comments about their respective organizations, affiliates and leadership.

ARTICLE 28

NO STRIKE / NO LOCKOUT

28.1 Prohibited Activity.

During the term of this Agreement, neither the Union nor its agents or representatives, nor any employee, individually or collectively, shall call, sanction, support or participate in any picketing (informational or otherwise), or any strike, work stoppage, sit-down, sickout or slow-down, or any refusal to cross a picket line at, or refusal to enter, the Hospital's premises, or any other interference with any of the Hospital's services or operations, or with the movement or transportation of goods to the Hospital's premises.

28.2 Waiver by Union.

The prohibitions of this Article are intended to apply regardless of the motivation for the strike or other conduct. By way of illustration only, this Article expressly prohibits (1) sympathy strikes (individual or concerted failure to cross a picket line established by another labor organization or by members of another bargaining unit); (2) strikes over disputes that are not subject to arbitration; and (3) strikes in protest of alleged violations of state or federal law. Any statutory right under the National Labor Relations Act which the employee may otherwise have to engage in such conduct is hereby expressly waived by the Union. Provided, nothing in the Article will forbid a refusal to work protected by the Occupational Safety and Health Act.

28.3 Penalty.

Any employee who participates in any activity prohibited by this Article shall be subject to discharge or such lesser discipline as the Hospital in its discretion shall determine, provided however, that such employee shall have recourse to the grievance and arbitration procedure as to the sole question of whether he or she in fact participated in such prohibited activity.

28.4 Union Officials.

In view of their leadership positions, the Local Union's elected officers shall take affirmative steps in the event of a violation of this Article. Those affirmative steps shall be to notify in writing the Union members actively and currently employed by the Hospital engaging in such activity, and indicating to the member: (1) that the action engaged in (as specifically outlined in Section 28.1 hereof) is a violation of the Collective Bargaining Agreement; (2) that such violation

by the member is subject to discipline, up to and including discharge; (3) that the prohibited activity is not legally sanctioned by Local 1107; and, (4) that the Union is urging members to immediately return to work.

28.5 No Lockouts.

The Hospital agrees that there shall be no lockout during the term of this Agreement. As used herein, the term “lockout” shall not include the closing down or curtailment of operations or layoffs due to economic conditions, business or operations reasons, natural disaster or reasons beyond the Hospital’s control.

28.6 Judicial Remedies.

The Hospital or the Union shall be entitled to all appropriate judicial remedies, including but not limited to, injunctive relief and damages, if a violation of this Article should occur. Either party may immediately institute judicial proceedings to obtain such remedies, without any prior obligation to seek relief under the grievance and arbitration procedure of this Agreement. Injunctive relief shall be available to the Hospital or the Union regardless of whether the dispute giving rise to the conduct prohibited by this Article is subject to arbitration. Any right to remove a state court action filed by the Hospital or the Union to federal court alleging a violation of this Article is expressly waived by the Hospital and the Union.

ARTICLE 29 NON-DISCRIMINATION

The Hospital and the Union agree that neither party shall discriminate against any employee covered by this Agreement on account of race, color, religion, national origin, age, sex, sexual orientation, gender identity, genetic information, protected veteran status, disability, union activity, or union membership, and as required by local, state, or federal law.

Alleged violations of the foregoing shall be subject to the grievance procedure set forth in Article 12, but no grievance will be referred to arbitration. Nothing herein shall prevent any party or any employee from seeking redress and obtaining relief from outside the grievance process, including but not limited to filing charges or claims with courts or administrative agencies.

ARTICLE 30 PAID TIME OFF

30.1 Accrual Rates.

Regular full-time and regular part-time employees accrue Paid Time Off (“PTO”) each pay period at the following rates:

Paid Time Off Accrual Schedules						
	Full-Time			Part-Time		
Years of Service	Accrual Rates/Pay Period	Total PTO Hours/Yr	Max. Accrual	Accrual Rates/Pay Period	Total PTO Hours/Yr	Max. Accrual
0-4	7.08	184.08	276	3.54	92.04	138
5 through 9	8.60	223.60	336	4.30	111.80	168
10 or more	10.15	263.90	396	5.08	132.08	198

The PTO program is in addition to Jury Duty and Bereavement Leave, and any other agreed upon paid leave.

30.2 Maximum Accrual.

PTO accruals may not exceed the maximum accrual for a given years of service. Once an employee's PTO reaches the maximum accrual, PTO will cease accruing until the accrual is reduced below the maximum.

30.3 Voluntary Cash Out.

Employees may cash out accrued PTO in excess of eighty (80) hours twice per calendar year, at \$0.90 on the dollar. Minimum cash out is eight (8) hours.

30.4 Automatic Cash Out.

An employee who, after three months of employment, terminates employment or reduces status to VSP, will be paid for all accrued PTO at one hundred percent (100%) of the value of the PTO. PTO is accrued in the last pay period worked as follows: one (1) to forty (40) hours ~ one-half (1/2) of bi-weekly accrual; forty-one (41) + hours worked ~ full bi-weekly accrual. An employee whose status is reduced from full-time to part-time who has PTO accruals in excess of the maximum for part-time employees will cease accruing PTO until the accrual is reduced below the part-time maximum.

30.5 Not Hours Worked.

PTO hours paid are not counted as hours worked for any purpose.

30.6 Use of PTO.

PTO may not be used during the first ninety (90) days of employment, except for holidays. After ninety (90) days of employment, PTO is paid whenever an employee is absent from work due to illness (prior to STD eligibility for full-time and part-time employees) or for vacation or personal days. Employees will not normally be permitted to take time off without utilizing PTO. However, employees may choose to use PTO if they are called off due to low census or if the employee takes a regularly scheduled day off during a week in which the employee picks up

additional shifts and thus works forty (40) hours (or, for part-time employees, a number of hours equal to his/her normal schedule).

30.7 Requesting and Scheduling of PTO.

30.7.1 It is understood that the Hospital has a duty to ensure that it has adequate, fully qualified staff on hand at all times to meet its operations requirements without significant use of overtime or temporary employees for relief. This duty will be taken into account when scheduling PTO for employees.

30.7.2 Employees may submit vacation requests electronically through the Hospital's electronic scheduling system, currently Facility Scheduler, or if elected by the department director, via paper forms. Employees may request to take up to a total of four (4) consecutive weeks of PTO in a calendar year.

30.7.3 For purposes of this Article, "work week" or "week" is defined as a period of seven consecutive days beginning on the day of the week on which the schedule (posted pursuant to Article 39) begins.

30.7.4 January through June PTO Requests.

Requests to use PTO in each unit or department during the first six (6) months of the year (January 2nd – June) may be submitted between September 1st and September 30th of the prior calendar year. During this same time period, each unit or department will solicit volunteers to work on the following Memorial Day. Requests to use PTO that are submitted during this time period will be considered as follows:

- i. Round One: each employee's request for up to two (2) full consecutive weeks of PTO will be granted if available in each unit or department in seniority order.
- ii. Round Two: each employee's requests for up to two (2) full weeks of PTO will be granted if available in each unit or department in seniority order.
- iii. Round Three: any further requests for PTO will be granted if available in each unit or department in seniority order.

After all requests that were submitted by the September 30th deadline have been granted if available then any PTO requests submitted after the September 30th deadline will be granted if available on a "first come, first served" basis, regardless of seniority. The unit or department will post its semi-annual PTO calendar by November 1st of the prior calendar year.

30.7.5 July through December PTO Requests.

In granting PTO to be taken between July and December each year (including New

Year's Day of the following year), requests for PTO during holidays will first be considered pursuant to Section 30.7.5.1 and then other requests for PTO will be considered pursuant to Section 30.7.5.2.

30.7.5.1 Between January 1st and January 31st each calendar year, each unit or department will solicit volunteers to work on July 4th of that calendar year, Labor Day of that calendar year, Thanksgiving of that calendar year, Christmas of that calendar year, and New Year's Day of the following calendar year. Also, between January 1st and January 31st each calendar year, employees may submit requests to use PTO in each unit or department for one of the following three: Thanksgiving of that calendar year; Christmas Day of that calendar year; or New Year's Day of the following calendar year. On a seniority-based rotational basis the Hospital will consider each employee's request for PTO for one of these days that is submitted during this time period. Such requests will be granted if available. After all requests submitted during this time period have been granted if available additional requests for more than one (1) holiday will not be unreasonably denied. Each unit or department will post a calendar of PTO granted pursuant to this subsection by February 28th of each calendar year.

30.7.5.2 Requests to use PTO in each unit or department during the second six months of the year (July – December) may be submitted between March 1st and March 31st of the current calendar year. Requests that are submitted during this time period will be considered as follows.

- i. Round One: each employee's request for up to two (2) full consecutive weeks of PTO will be granted if available in each unit or department in seniority order.
- ii. Round Two: each employee's requests for up to two (2) full weeks of PTO will be granted if available in each unit or department in seniority order.
- iii. Round Three: any further requests for PTO will be granted if available in each unit or department in seniority order.

After all requests that were submitted by the March 31st deadline have been granted if available then any PTO requests submitted after the March 31st deadline will be granted if available on a "first come, first served" basis, regardless of seniority. The unit or department will post its semi-annual PTO calendar by May 1st of each calendar year.

30.7.6 Approval of PTO Requests.

Requests for use of PTO for planned absences will be approved based on the staffing needs of the unit or department. PTO requests may be denied whenever, in the judgment of the Hospital, granting the request would jeopardize staffing levels or compromise patient care. Once approved, PTO requests will not be changed or rescinded

by the Hospital except (i) in the event of implementation of the Hospital's disaster plan or (ii) to the extent that the employee will not have sufficient PTO to cover the absence. If the employee does not have sufficient PTO to cover the absence, the employee may request to take the pre-scheduled PTO as unpaid time, and such requests may be approved by management. Such requests will be granted to the extent that the lack of available PTO is a consequence of non-discretionary usage (non-voluntary call off, bereavement leave, general medical leave, FMLA, or Workers Comp leave).

30.7.7 New Hires

If an employee is hired after the deadlines set forth above for holiday scheduling, then they will be given the opportunity to volunteer for holidays and will be added to the holiday schedule according to seniority as needed.

30.8 Donation of PTO.

Vacation time (in increments of no less than one (1) hour) can be transferred from one employee to another employee who is experiencing a hardship situation. A bona fide hardship is limited to situations of illness or injury to the recipient employee, or illness or injury of an immediate family member of the recipient employee.

In order to receive a vacation contribution, the recipient employee's vacation account (and in the case of the employee's own illness, the recipient's sick leave accounts) must be exhausted. Employees who wish to donate vacation must have a minimum of forty (40) hours remaining in their balance after the donation. Employees may not donate more than fifty percent (50%) of their accrued vacation balance.

ARTICLE 31 PAST PRACTICES

The Hospital agrees that, to the extent that bona fide past practices are identified, the Hospital will not change such practices in an arbitrary or capricious manner.

ARTICLE 32 PAY CHECK ERRORS

Errors resulting in underpayments to employees shall be corrected and an additional check for the underpayment shall be issued to the employee as soon as possible, but no later than the next paycheck distributed five (5) or more days after the Hospital is notified of the error via a paycheck discrepancy form or other written method.

ARTICLE 33 PERSONNEL FILES

Each employee shall have the right to inspect electronic copies of his/her personnel file (not including references received from former employers) through the Hospital's web portal, HR Answers, and to make their own copies, at no charge, using the computer in Human Resources. Copies of documents in personnel files (other than reference responses from former employers) will be provided upon written request of the employee at the charge of \$.60 per page. This provision has no application to what the Hospital charges for copies of documents requested in subpoenas. Union representatives shall be allowed to inspect such records in connection with a potential or pending grievance, if authorized in writing by the grievant. All such inspections will be conducted in the presence of the Director of Labor Relations or his or her designee at a location selected by the Hospital during normal office hours.

If an employee disputes the accuracy of materials placed in the employee's file, the employee shall have the option of responding to the disputed materials and the response will be attached to the materials. The response will be of a reasonable length. If the employee can show the Human Resources Office that materials in the file are erroneous and the manager does not dispute the employee's claim, the Human Resources Office will expunge the material from the employee's file.

The Hospital shall not release information in employees' personnel files beyond dates of employment and job titles unless authorized by the employee or required by law; provided, if an employee is discharged because of patient abuse, violent conduct, or criminal conduct, the Hospital may, in its discretion, provide truthful information concerning the reasons for discharge.

ARTICLE 34 PROBATIONARY PERIOD

All regular full-time employees hired after the effective date of this Agreement shall be considered as probationary employees until they have worked for the Hospital for ninety (90) calendar days in a bargaining unit position. The probationary period for part-time and VSP employees shall be four hundred and sixty-eight (468) hours or ninety (90) calendar days, whichever is longer. Probationary employees have no seniority status, and may be disciplined or discharged without recourse to the grievance and arbitration procedures. At the completion of the probationary period, seniority shall date from the initial date of hire. In exceptional instances, upon mutual agreement, in writing between the Union and the Hospital, the probationary period may be extended once, for an additional thirty (30) calendar days. The purpose of the extension is to afford the Hospital the opportunity to adequately evaluate the employee. The failure to extend the probationary period shall not be grievable.

ARTICLE 35 RECOGNITION

35.1 Exclusive Bargaining Representative.

The Hospital recognizes the Union as the sole and exclusive bargaining representative of the employees in the following classifications as certified by the National Labor Relations Board in Case No. 28-RC-330552:

All full-time, regular part-time, and VSP employees employed by the Hospital at its facilities located at Sunrise Hospital & Medical Center main campus and Sunrise Children's Hospital (3186 S. Maryland Parkway, Las Vegas, NV and 3131 La Canada Street, Las Vegas, NV) and the ER at Boulder's Edge (1501 Wagon Wheel Drive, Henderson, NV) in the following classifications as set forth in the stipulated election agreement: Clinical Pharmacist, Medical Technologist, Physical Therapist, Occupational Therapist, Social Worker, and Speech Language Pathologist, excluding all other employees, including but not limited to office clerical employees, office professional employees, Midnight Charge Pharmacists, Lead Physical Therapists, Lead Occupational Therapists, managerial employees, guards, and supervisors as defined in the Act.

35.2 Departmental Lists.

The Departments/Cost Centers employing bargaining unit employees as of the effective date of this agreement are set forth in Appendix ____, hereto and will be adjusted from time to time to account for necessary operational changes at the sole discretion of the Hospital.

35.3 Withdrawal of Recognition.

The Hospital agrees not to and expressly waives any right it may have to withdraw recognition concerning, to petition for unit clarification concerning, or in any other way to challenge the inclusion in the bargaining unit of any employees or classifications or job titles who or which are currently included in the unit on the grounds that they are or may be supervisors or supervisory.

35.4 Bargaining Unit Work.

35.4.1 The Hospital shall not establish jobs or job titles for the purpose of excluding work or employees from the bargaining unit as established in this Article and shall not hire or utilize existing supervisors who are not part of the bargaining unit to perform bargaining unit work except as consistent with past practice, provided that supervisory employees shall not be utilized to displace bargaining unit employees in order to increase their own hours, or to fill positions previously occupied by bargaining unit employees, nor shall they be used to indefinitely reduce or limit hours of work for bargaining unit employees. Nothing in this Article will prohibit supervisors employed by the Hospital from performing bargaining unit work in the course of a strike or lockout.

35.4.2 The Hospital and the Union recognize and acknowledge that certain community-based special programs (for example, Developmentally Disabled Programs, use of volunteers, students, youth programs, *etc.*) serve an important public function and may be used by the Hospital at their sole discretion to further that function. The parties agree that nonemployee participants in such programs shall not displace bargaining unit employees or the hours of bargaining unit employees. Information on any such programs, including the number of participants, their classification, duties, work locations, hours per week, and the duration of the program shall be furnished to the Union at any time, upon request.

35.5 New Classifications.

The Hospital will inform the Union if it creates a classification in the Bargaining Unit. Upon the Union's request, the parties will meet to discuss the impact of the new classification, with said discussions not to exceed thirty (30) days after notice was provided. If the parties are unable to reach an agreement after thirty (30) days, the Hospital may implement the new position. Any dispute as to the applicability of this Agreement to the newly created position(s) will be resolved by the National Labor Relations Board.

**ARTICLE 36
RELOCATION OF BARGAINING UNIT WORK**

36.1 Right of Hospital to Relocate Bargaining Unit Work

This Agreement shall not prohibit the Hospital from relocating work done by bargaining unit employees out of the Hospital to another HCA affiliate, if such relocation is done pursuant to a corporate program to consolidate and share services among hospitals. After such relocation to another HCA affiliate, the functions formerly performed by these employees will not be performed within the Hospital except by bargaining unit employees. In the event of such a corporate-structure-driven relocation, the Hospital will advise the Union at least thirty (30) days in advance of the effective date of the relocations.

36.2 Effects of the Relocation.

36.2.1 A full-time or part-time bargaining unit employee whose job is eliminated as a result of relocation of bargaining unit work may bump the least senior bargaining unit employee in his/her department/cost center or classification (who has the same or, at the option of the employee, lesser status) on the same shift (or on any shift if there is not a less senior employee on the same shift), provided that the employee is fully capable of performing the duties of the job with no more than ten (10) days of orientation. In no event shall there be more than one (1) level of bumping (*i.e.*, if Employee A is selected for layoff and, by the procedures set forth above, Employee A bumps Employee B from his/her job, Employee B has no bumping rights). An employee who bumps into another position pursuant to this Section will be "red circled" at his or her current rate (not greater than the max for the new classification) and the employee's rate would thereafter remain the same until such time he or she would be entitled to an increase based on the applicable scale and

his or her credited experience.

Before an employee may bump, the employee may be required to bid on any vacant positions in his/her classification, status and shift for which the Hospital believes the employee may be qualified. Selection for such positions will be as set forth in Article 48. In the event the employee is not the successful bidder, he/she may exercise his/her bumping rights provided he/she does so by 5:00 p.m. on the second weekday following the day on which he/she was notified that he/she was not the successful bidder.

36.2.2 Full-time and part-time bargaining unit employees who experience job loss as a result of relocation of bargaining unit work shall be eligible for severance benefits as follows:

Length of Service	Weeks of Base Pay
At least 91 days but less than 3 years	80 hours (2 weeks)
3 years but less than 5 years	120 hours (3 weeks)
5 years but less than 8 years	160 hours (4 weeks)
8 years but less than 10 years	200 hours (5 weeks)
10 years but less than 15 years	320 hours (8 weeks)
15 years but less than 20 years	400 hours (10 weeks)
20 years or more	480 hours (12 weeks)

Severance pay under this subsection shall be paid based on the employee's status. Severance pay will be paid on a bi-weekly basis. In addition, the Hospital will continue to provide insurance coverage in effect at the time of the job loss at the same cost that was in effect immediately prior to the job loss (except to the extent the cost of such coverage increases during the severance period) to employees who have experienced job loss for the same period as the severance pay.

All severance entitlement and payments will cease upon the earlier of return to work or fourteen (14) days from the mailing of a written communication (sent by certified mail) of available employment.

This severance pay provision shall not apply if the employee declines to interview for, declines an offer of, or accepts continued employment with the Hospital or an HCA affiliate at a base salary level that is at least 85% of the employee's most recent base salary with the Hospital. Base salary shall mean the employee's base wage rate times his or her full-time equivalent (FTE). The offer of employment must be in a position for which qualifications are substantially similar to the position previously held by the employee or

a position where the employee has the previous experience and/or qualifications and is capable of performing the work.

In the event the employee continues employment or accepts an offer of employment from an HCA affiliate in a job for which the base salary is more than 15% below the employee's most recent base salary with the Hospital, the employee will be eligible for a prorated severance payment. The prorated severance amount will be determined by subtracting the new salary from the most recent base salary, and multiplying that amount by the number of weeks outlined in the severance schedule above.

In the case of failure to accept employment offered by an HCA affiliate, consideration will be given to the employee's commuting distance. Eligibility for severance will not be affected by failure to accept employment at an affiliate which is greater than 25 miles from the employee's home or is not comparable to the employee's prior commute (if longer than 25 miles).

Employees who accept re-employment with the Hospital or an HCA affiliate within ninety (90) calendar days of separation may only retain a pro-rated portion of the severance payment.

Upon request the Hospital will bargain with the Union over any other effects of the relocation on bargaining unit employees. The severance benefits set forth in this subsection 36.2.2 and any other rights and benefits that result from any effects bargaining conducted pursuant to this subsection 36.2.2 shall be the exclusive rights and benefits to which employees who experience job loss as a result of a relocation of bargaining unit work are entitled and shall be in lieu of any other rights and benefits set forth in this Agreement for employees who experience job loss, including but not limited to those rights and benefits set forth in Article 20, Layoff/Recall.

36.3 Use of Agency and Traveler Employees

This Article does not prohibit the use of agency or traveler employees from an HCA affiliate consistent with the Hospital's historical usage of such temporary employees to supplement staffing.

ARTICLE 37 SAFETY AND HEALTH

37.1 Safe Work Place.

The Hospital shall comply with all state and federal laws and regulations concerning workplace safety. Employees should report any safety concerns to the Hospital's Safety Officer. No employee shall be required to work under conditions that would be hazardous to the employee's safety in violation of state or federal law. No employee will be disciplined or retaliated against for reporting such conditions. If the Hospital does not remedy a safety issue within a reasonable period of time, the employee or the union shall be free to contact the appropriate state or federal agencies

concerning the matter. Disputes concerning conditions of health and safety within the Hospital shall not be subject to the grievance and arbitration procedures of this agreement, but shall be subject to the applicable administrative procedures established by federal and Nevada laws. Issues arising under this Section of this Article may be addressed by the Labor-Management/Patient Care Committee.

37.2 Infectious and Communicable Disease Control.

The Hospital shall continue to maintain a program of infectious and communicable disease control. Except as required by law, the Hospital shall not be obligated to provide for or pay for COVID-19 testing; however, the expense of testing may be covered under health insurance benefits. The Hospital will continue to provide Hepatitis B & C testing (following workplace exposure), titer testing (as required) and vaccines (if needed) for measles, mumps, chicken pox, rubella and rubeola, TB screening or testing (on employment, annually and following workplace exposure), HIV testing (following workplace exposure), flu vaccines (during flu season), COVID-19 vaccine (as recommended by the CDC), the Hepatitis B vaccine series (as required or upon request), and any other vaccination required by the Hospital at no cost to employees. In the event that a federal, state, county, or other governmental authority implements a voluntary smallpox vaccination program for bargaining unit employees, the Hospital will bargain over the effect of the program on bargaining unit employees. Such items for bargaining include what training, education, and counseling should be provided to employees to help them decide whether they should volunteer for vaccination, the content of an informed consent form, plans for on-site monitoring and care of vaccination site and tracking and reporting of complications, a no discrimination provision for non-participation, and what type of vaccination needles will be used. The Union will initiate such bargaining by providing the Hospital with written proposals on each of the foregoing subjects and the parties will thereafter meet to bargain over the issues for up to thirty (30) days.

The Union may appoint three (3) employee representatives to serve on the Executive Committee of the Safety Committee established pursuant to Nevada Revised Statute 618.383. Time spent in attendance at meetings of the Committee by such employee representatives will be paid time and will be treated as hours worked.

37.3 Harassment.

The Hospital does not tolerate unlawful harassment or threats of physical harm to or by its employees.

The Hospital shall take reasonable steps within its control to protect employees from assault or unlawful harassment. Complaints of such conduct should first be directed to the employee's immediate supervisor. If the immediate supervisor's response fails to resolve the matter within a reasonable time, the employee should reduce the complaint to writing within fourteen (14) calendar days of the occurrence and submit the complaint to the Director of Labor Relations or his or her designee for review and investigation. The Director of Labor Relations or his or her designee will meet with the complaining employee(s) and Union Representative (if desired by the employee) within eight (8) calendar days. The Director of Labor Relations or his or her designee will respond to the employee(s) (and the Union if involved), within seven (7) calendar days from the date of the meeting as to the disposition of such complaint.

The resolution of such complaints by the Director of Labor Relations or his or her designee shall be subject to the grievance or arbitration provisions of this Agreement.

ARTICLE 38 SAVINGS CLAUSE

If any Article or Section of this Agreement should be found invalid, unlawful, or not enforceable by reason of any existing or subsequently enacted legislation or by judicial authority, all other Articles and Sections of this Agreement shall remain in full force and effect for the duration of this Agreement, and the parties will meet and negotiate in good faith to reach a revised agreement as to the subject matter of the affected Article or Section.

ARTICLE 39 SCHEDULING

39.1 In General.

Schedules shall be made out according to the needs of the department or unit. The Hospital agrees to continue the practice of permitting full-time and part-time employees, in departments which do not have fixed or rotating schedules, to submit timely written requests to the employee's department manager (or designee) indicating their preference for days off. Conflicting requests for a given day off on file in the department or unit at the time the schedule is being prepared will be resolved by granting the requests on a rotating basis, beginning with the most senior of the requesters, provided, in the good faith judgment of the Hospital, such selection will not adversely affect patient care or productivity and will not unfairly burden other staff with unreasonable schedules. The Hospital will also continue the practice of permitting employees to exchange shifts, where such exchanges do not result in additional overtime or premium pay, and when, in the good faith judgment of the department manager (or designee), the request can be accommodated without adversely affecting patient care. VSP employees who are scheduled for work hours may exchange shifts with other employees as described above.

In the event it becomes necessary to revise the schedules of staff in a department in which the staff have fixed or rotating schedules, the manager will communicate with employees prior to implementation of such proposed changes to make a reasonable attempt to revise the schedule so as to have the least impact on the fewest full-time and part-time staff.

39.2 Weekends.

Employees are expected to share equitably the weekend shifts as may be required by the Hospital. If needed, part-time employees in such units will be required to work at least two (2) weekend days or three (3) weekend night shifts per four (4) week schedule and VSP employees shall work at least one (1) weekend shift per four (4) week schedule. Except for employees who are hired into, or who bid into, a position calling for a more frequent weekend schedule, the Hospital will make every reasonable effort not to require full-time day shift employees to work

more than four (4), or full-time night shift employees work more than six (6), weekend shifts in any given four (4) week schedule.

39.3 Posting of Schedules.

Schedules for all employees, covering a period of at least four (4) weeks, will normally be posted at least thirteen (13) days in advance of the beginning of the schedule, unless a shortage of staff precludes that amount of notice (in which case such schedules will be posted with as much advance notice as possible). VSP employees will not normally be scheduled for work hours until all full-time and part-time staff is scheduled for their hours of work. Travelers and agency staff will not be scheduled for work hours until all full-time and part-time employees are scheduled for their regular hours.

39.4 Changes to Posted Schedules.

If the Hospital determines that shift and/or schedule changes are needed after a schedule has been posted, the Hospital will make a good faith attempt to reach a mutual agreement with the involved employees (this may include seeking volunteers). If no mutual agreement can be reached, the Hospital may introduce a shift rotation procedure that would be equitably applied to all employees who are qualified in the judgement of the Hospital, beginning with the least senior qualified employee. However, if the assignment would result in overtime or other premium pay, the Hospital may move to the next qualified employee in the rotation and go back to the skipped person when it does not cause overtime or premium pay. The selected employee(s) may be required to alter their schedules for the remainder of the schedule.

39.5 Applicability of Article.

This Article does not apply to daily reductions in staffing addressed in the Call-Off Procedure (Article 5), nor does it apply to extension of hours beyond the scheduled end of a shift due to operational needs.

ARTICLE 40 SENIORITY

40.1 Definition of Seniority.

Hospital-wide seniority shall be defined as an employee's unbroken length of service with the Hospital since the most recent date of hire into a full-time or part-time position. Classification seniority shall be defined as an employee's unbroken length of service within their current classification as a full-time or part-time employee.

When a new classification is established, the Hospital will meet with the Union to determine if employees transferring from other classifications should receive classification seniority credit for prior service in another classification (for example, where the newly established classification is merely a progression from an existing classification).

In addition, in the event an employee's position is eliminated and the employee, rather than bumping another employee, in his/her classification, applies for and is awarded a position in a different classification, the employee's Hospital seniority shall apply for all purposes.

Upon announcement of a layoff or other event affecting bargaining unit employees where seniority is relevant, the Hospital shall furnish the Union with a seniority list showing for each potentially affected employee the name, job classification, and the classification and Hospital seniority dates. Such lists shall be posted or available for review in any affected cost center, department or unit.

40.2 Application of Seniority.

During the first eighteen (18) months following a voluntary change in classification or department/cost center, seniority in the new job classification or department/cost center will apply for purposes of vacation request, holiday rotation, and bidding on available shift assignments. After an employee has been in a classification or department/cost center for eighteen (18) months, Hospital seniority will apply for all purposes

40.3 Termination of Seniority / Break in Service.

An employee's seniority and employment relationship with the Hospital shall terminate upon the occurrence of any of the following:

- Resignation, unless the employee returns to a full-time or part-time position within ninety (90) calendar days;
- Discharge for just cause;
- For employees with less than five (5) years of service, layoff or a period of twelve (12) months from the date of layoff;
- For employees with five (5) or more years of service, layoff for a period of twenty-four (24) months from the date of layoff;
- In the event an employee transfers to a non-bargaining unit position in the Hospital and later returns to a bargaining unit position, without a break in full-time/part-time service, the employee will be credited with that Hospital and classification seniority which the employee had at the time the employee transferred out of the bargaining unit position;
- When a full-time or part-time employee changes status to VSP and later returns to a full-time or part-time position, he/she will be credited with prior seniority status.

ARTICLE 41 SHARED VISION

The Hospital and the Union share a commitment to provide high quality, therapeutic, accessible, affordable healthcare to the communities we serve. The Hospital and the Union further agree that they will use their best efforts to provide the highest level of patient care and that they will work together to improve the lives of the people and communities they serve by: respecting

the inherent value and worth of each person; working together with people who support common values and visions to achieve shared goals; acting in ways that promote respect for all persons and each other and demonstrate compassion; cultivating the resources entrusted to promote healing and wholeness; and exceeding expectations through teamwork and innovation. Both parties recognize that it is also to their mutual advantage to have efficient and continuous operations of the Hospital in order to provide quality patient care.

Nothing contained in this Article is intended to create any substantive rights, duties, or obligations on the part of either party or to provide evidence of the intent of either party with respect to any substantive provision of this Agreement.

ARTICLE 42 SHOP STEWARDS

42.1 Written Notification of Union Stewards.

The Union will provide the Hospital in writing or by email with a list of those employees who are Stewards and will timely provide updated lists when there are changes to Stewards. The Hospital will have no obligation to recognize a Steward until such notice is received. All Stewards must be employees of the Professional bargaining unit.

42.2 Assisting Employees.

Shop Stewards are responsible for informing bargaining unit employees of their rights and responsibilities under this Agreement, to ascertain that the terms and conditions of this Agreement are being observed, and to investigate and assist in the processing of grievances. If Shop Stewards attend meetings or investigate grievances during working time, they will seek permission from the Hospital which will not arbitrarily be denied. The Steward will not suffer any loss of pay for attending grievance meetings or for investigation grievances, so long as an investigation does not result in premium pay to the Steward's department.

42.3 Upon advance written request, the Hospital will make reasonable efforts to provide up to five (5) days without pay per calendar year to Shop Stewards for the purpose of participating in Union educational programs, provided that coverage can be obtained without the need for premium pay or registry.

42.4 Upon advance written request, shop stewards will be permitted to leave their normal work to attend the monthly shop steward meeting or address bargaining unit orientees at general orientation sessions. The Hospital will not unreasonably deny such requests. The Steward will not suffer any loss of pay for attending general orientation sessions. The Union's general orientation presentations will be conducted concurrently with the presentation of any other union or bargaining unit Steward that represents employees at the session, but the number of permitted Union Stewards and representatives shall be increased to allow for two (2) more total to attend for the Professional bargaining unit.

42.5 Weingarten Rights.

In connection with investigatory interviews required by the Hospital which an employee reasonably believes will result in disciplinary action being taken against the employee, an employee, upon the employee's request, shall be entitled to have a Shop Steward or field representative present, provided that such investigatory interviews will not be delayed if a Shop Steward or field representative will not be available within twenty-four (24) hours. It is understood that the role of the Shop Steward or field representative shall be strictly limited to the rights accorded such representatives by the NLRB.

42.6 Negotiating Committee.

Except to the extent that patient care needs dictate otherwise, members of the Union negotiating committee will be granted time off without pay (or PTO at the employee's option) on the day of negotiation sessions, and further, in the event a bargaining unit committee member is scheduled on a shift contiguous to the starting time of negotiations, that committee member shall upon timely request be scheduled off from work as well. In order to effectuate this, the parties will make every effort to establish bargaining dates as far in advance as possible. Nothing in this Section requires the Hospital to release an employee for a date if the coverage cannot be found without overtime, on-call, or registry usage if the manager does not receive the request for the time off within at least seventy-two (72) hours after negotiations dates are set. The Hospital shall have no duty under this Article to accommodate a request for time off which is not communicated as soon as practicable, but no later than within seventy-two (72) hours after a date of negotiations is established.

ARTICLE 43 SHORT-TERM DISABILITY PLAN

The Hospital shall provide benefits-eligible full-time and part-time employees with the same short-term disability plan that it provides to its non-bargaining unit employees. The Hospital agrees to maintain the short-term disability plan for the duration of this Agreement. However, changes and/or substitutions to the plan may be made, provided the Hospital: (a) affords the Union sixty (60) days' notice of such change; (b) agrees to bargain with the Union over the effects of such changes and/or substitutions; and (c) the change(s) and/or substitutions either (1) apply prospectively (i.e., the current employee maintain the current benefit), or (2) do not result in a material and substantial decrease in the overall plan benefit.

ARTICLE 44 STAFF DEVELOPMENT

44.1 Purpose

The Hospital is committed to ensuring that all employees receive the necessary training, onboarding, and orientation to perform their duties effectively and safely. This Article outlines the

framework for onboarding new employees, orientation to specific departments/units, and ongoing staff development through in-service training. The procedures set forth in this Section shall be subject to the grievance and arbitration procedure contained in this Agreement. The scope of the arbitration shall be limited to whether the Hospital complied with the procedures of this Article (e.g., did the Hospital provide a new employee an orientation, as opposed to disputes regarding the contents or delivery of any orientation or training program) and/or the level of discipline imposed for a training-related reason consistent with Article 9 (Disciplinary Action).

44.2 Onboarding and Orientation for New Employees.

44.2.1 New Employee Onboarding.

Upon hire, all new employees will undergo an onboarding process, the length and contents of which will be determined at the Hospital's sole discretion, but which may include an introduction to the Hospital's philosophy, relevant policies and procedures, and culture. This may consist of both classroom training and supervised hands-on clinical experience where applicable.

44.2.2 Department Orientation Program.

All newly hired employees will participate in an orientation program, the length of which will be determined at the Hospital's sole discretion, taking into account the orientee's clinical competence and input from the employee, preceptor, and management. The orientation may include department policies, safety procedures, and job-specific training.

44.2.3 Floor and Unit-Specific Orientation.

An employee newly assigned to a specialty or higher acuity department or unit will receive additional orientation, the content and length of which will be determined at the Hospital's sole discretion, relevant to the employee's roles, which may include additional training on unit policies, equipment, and procedures.

44.3 Ongoing Training and In-Service Education.

44.3.1 In-Service Education.

The Hospital will maintain an ongoing in-service education program to ensure employees are continuously updated on new procedures, policies, equipment, and care techniques. In-service program scheduling will take into consideration on-going patient needs as well as employee work schedules to maximize employee participation.

44.3.2 Mandatory and Elective In-Service Training.

Mandatory In-Service: Employees may be required to attend certain in-service training programs as determined by the Hospital. Time spent in mandatory in-service training shall be paid as part of the employee's regular work hours. Failure to attend a mandatory training program as scheduled may subject an employee to discipline under the

Hospital's attendance policy to the same extent as an absence from scheduled work and may result in suspension without pay until completion of the required training. Whether the employee received sufficient notice of the training will be considered in determining discipline, if any.

Elective In-Service: Elective training and development opportunities will be made available, with a focus on expanding clinical skills and professional growth.

44.3.3 Advance Notice for Training.

When possible, the Hospital will provide at least seven (7) days advance notice for mandatory in-service training or programs scheduled outside of normal work hours. An employee will not be considered for discipline if the employee misses a training scheduled during a previously approved Time Off.

44.3.4 Training for Transferring Employees.

An employee transferring between departments or units will be provided with a re-orientation to the employee's new role, covering unit-specific protocols, equipment, and patient care practices.

44.3.5 Training on New Equipment and Services.

When new equipment or services are introduced, impacted employees will receive training during work hours if determined necessary by the Hospital at its sole discretion. In such instance, participation in such training will be considered mandatory and compensable time.

ARTICLE 45 STATUS OF EMPLOYMENT

45.1 Regular Full-Time Employees.

A regular full-time employee is an employee who is scheduled to work a minimum of sixty-four (64) hours per pay period on a regularly scheduled basis, in a non-relief and non-temporary capacity.

45.2 Regular Part-Time Employees.

A regular part-time employee is an employee who is scheduled to work at least forty (40) hours but less than sixty-four (64) hours per pay period on a regularly scheduled basis, in a non-relief and non-temporary capacity.

45.3 Variable Staffing Pool (VSP) Employees.

Variable Staffing Pool employees are scheduled to work variable hours based on the needs of the Hospital. VSP employees must: (a) work a minimum of three (3) shifts per schedule, if desired by the Hospital; (b) work one (1) weekend shift per month, if needed; (c) work at least one (1) “major” holiday (Thanksgiving, Christmas or New Year’s Day), if needed; and (d) work at least one (1) “minor” holiday (Memorial Day, Independence Day or Labor Day) if needed. VSP employees are ineligible for fringe benefits except as outlined in Appendix C.

45.4 Temporary Employees.

A temporary employee is an employee who is hired as an interim replacement or to fill a temporary full-time or part-time need, not exceeding ninety (90) days, except that a temporary employee may be hired for up to six (6) months if replacing an employee on a leave of absence. In the event that a temporary employee is employed beyond these periods, the employee will be offered a position as a VSP employee as defined in Section 3 (subject to successful completion of the Hospital’s employment process). Temporary employees shall not be terminated for the sole purpose of keeping a regular job constantly staffed by temporary employees. In no event will a particular temporary employee work more than one (1) year.

45.5 Traveler Employees.

A traveler employee is an employee who is placed on assignment by a contract agency for a specific period of time. Traveler employees are not covered by this Agreement. Traveler employees will not be used to permanently replace full-time, part-time, or VSP employees and thereby cause an erosion of the bargaining unit.

45.6 Reclassification.

A VSP employee who is working a regular schedule of at least forty (40) hours per pay period or a regular part-time or VSP employee who is working a regular schedule of at least sixty-four (64) hours per pay period, in a non-relief capacity, for twelve (12) of fifteen (15), or eighteen (18) of twenty-six (26), consecutive pay periods, will, upon written request, be reclassified on a prospective basis to part-time or full-time status (as the case may be) effective the first pay period following receipt of the request. Such requests for reclassification must be received within thirty (30) days of the end of the last pay period considered in determining eligibility for reclassification. Hours worked by a VSP employee after ratification of this Agreement during an emergency designated by the Governor or Federal Government that affects hours worked at the Hospital, including but not limited to any epidemic or pandemic, shall not count toward reclassification. For purposes of this Section, pay periods immediately prior to and after such designated emergency shall be considered consecutive pay periods.

ARTICLE 46 SUBCONTRACTING

During the term of this Agreement, the Hospital will not subcontract work currently being performed by bargaining unit employees, except as such work has been historically subcontracted to augment staffing on a temporary basis. The Hospital will not call employees off when work that such employees sometimes perform and wish to perform is being done by contractor personnel, unless utilization of such employees will not eliminate the need for contractor personnel.

ARTICLE 47 TIME OFF TO VOTE

Employees who, because of their work schedule, do not have sufficient time to vote in a federal, state, county, or city election, will have their hours of work adjusted or will be granted time off with pay to give them sufficient time to vote. Employees should request such time off sufficiently in advance of the day of the election to allow time for the manager responsible for the work area to obtain coverage. For purposes of this policy, sufficient time to vote will be as set forth in Title 24, Nev. Rev. Stat. Ann. Sec. 293.463.

ARTICLE 48 TRANSFERS AND PROMOTIONS

48.1 Whenever a job opening occurs in the bargaining unit and the Hospital intends to fill the opening, notice of the vacancy will be posted on the Hospital website for at least seven (7) calendar days. The Hospital may extend the posting period for any vacancy. Minimum qualifications, pay grade, department/cost center and shift (if fixed) shall be noted on the posting. An employee tenders his/her bid by completing any appropriate online documentation.

48.2 In filling vacancies in bargaining unit positions, the Hospital shall select the internal applicant who is, in the good-faith judgment of the Hospital, the best qualified for the position. In evaluating internal applicants based on their qualifications, the Hospital will consider the applicant's experience, skill, ability, knowledge, performance in current position, and disciplinary record (if any). For purposes of this Section, (a) verbal counselings (even if documented) or discipline (other than final warnings and suspensions) older than two (2) years will not be considered; and (b) employees with any discipline within six (6) months of the date the vacancy is posted or who are on a Final Written Warning will not be eligible for consideration. Subsection (B) may be waived by management at its discretion.

In the event that the best qualified applicants have relatively equal qualifications, in the good faith judgment of the Hospital, which shall be based on the foregoing criteria, the Hospital will award the position as follows:

48.2.1 To the full-time or part-time applicant with the greatest Seniority working in the unit/department where the vacancy exists;

48.2.2 Next, to the VSP applicant with the longest continuous service with the Hospital working in the unit/department where the vacancy exists;

48.2.3 Next, to the full-time or part-time applicant with the greatest seniority working outside of the unit/department where the vacancy exists;

48.2.4 Then, to the VSP applicant with the longest continuous service with the Hospital working outside of the unit/department where the vacancy exists; and

48.2.5 Finally, a non-bargaining unit employee or applicant may be selected for a vacant position within the bargaining unit if there are no qualified applicants from the bargaining unit.

48.3 The Hospital will make every reasonable effort to place a successful applicant in the new position within forty-five (45) days of selection. Employees newly hired into a job will be ineligible to apply for other vacancies until they have at least one (1) year of experience at the Hospital, unless the service period is waived in writing by the Hospital. Employees selected to fill vacancies will be ineligible to apply for other vacancies for one hundred eighty (180) days from the date of transfer or promotion, unless the service period is waived in writing by the Hospital. This limitation will not apply to transfers in the same classification to increase hours or to applications for promotion by employees with at least six (6) months service with the Hospital.

48.4 Employees who are promoted or transferred to another bargaining unit position through the bidding process shall have up to ninety (90) days of evaluation of their performance. If, at any time within such ninety (90) day period, the employee fails to perform to the satisfaction of the Hospital, the Hospital may, in its discretion and as an alternative to following the counseling and disciplinary process, return the employee to the employee's former position, including shift, assignment, scheduled hours, and rate of pay without loss of seniority. Employees may request and will be returned to their prior position within ninety (90) days of transfer without loss of seniority if the position is available at the time of the request.

ARTICLE 49

UNION ACCESS AND COMMUNICATIONS

49.1 Bulletin Boards.

The Hospital will provide the Union with a lockable bulletin board at least 24 by 36 inches located in the Hospital's cafeteria for the posting of Union notices, and five (5) similar boards located as follows: two (2) by the service elevators in the main (adult) Hospital, two (2) by the service elevators in the Children's Hospital, and one (1) near the EVS time clock. Each notice shall be signed and dated by the Union Representative posting the notice and a copy of each notice shall be delivered to the office of the Director of Labor Relations or his or her designee without unreasonable delay upon being posted. The Union may also post communications on existing employee bulletin boards located in employee break rooms and employee lounges. Employee break rooms and employee lounges' bulletin board space will be respectfully shared by employees, the Union, and the Hospital. No materials will be posted that are critical of any Hospital employee or of any policy relating to patient care or the delivery of patient care at the Hospital. The Hospital will provide the Union with access and a key to the Bulletin Boards identified above. In the event

the key is misplaced, the Union will pay the Hospital a fee of \$150.00 to rekey the Bulletin Board locks. The Hospital will not access any Union bulletin board to remove union literature, unless a request has been made to the Union, in writing, of a serious and clear violation of the foregoing. Repeated violations of this policy by Union Representatives shall be grounds for revocation of the posting rights granted by this Article. If the Union wishes to grieve any limitation on access implemented pursuant to this Section, it may do so by filing a grievance directly at arbitration.

49.2 Union Staff Representatives.

49.2.1 Authorized Representatives. Authorized representatives of the Union (including off duty union stewards) shall be permitted to enter the Hospital at any time the Hospital is in operation to see that the provisions of this Agreement are being observed. The representative may confer with bargaining unit employees on their non-working time in cafeterias, employee break rooms, or employee lounges. Such conferences shall not interfere with the operation of the Hospital. Union representatives shall not interrupt the work of employees who are on working time for any reason. Union representatives will not enter enclosed working areas of the Hospital or other areas that are not open to visitors, other than employee-break rooms and employee lounges. Before accessing Hospital property, union representatives shall comply with Hospital badging requirements. The Union will inform the Hospital in writing by e-mail of the names of its then-current authorized representatives and will timely provide updated lists when there are changes to the representatives or upon request of the Hospital. In order for a Union representative to be eligible for access to the Hospital, the Union must provide the Hospital in advance (i) a criminal background check obtained within the last five (5) months containing the information in the form currently provided; (ii) a current TB test; and (iii) the Union representative's attestation of compliance with the Hospital's then-current influenza policy. If the Hospital concludes the information provided is acceptable, it will notify the Union within two (2) business days that the Union representative is eligible to obtain a badge and access the facility. The Hospital may condition a Union representative's continued eligibility for a badge on successfully passing and complying with the same requirements on the same basis and frequency as it requires of its employees. The Hospital shall provide the Union prompt notice of any changes in these requirements.

49.2.2 Notice of Arrival. The representative of the Union shall notify the Director of Labor Relations or his or her designee of his/her intended arrival on Hospital property by text message no more than three (3) hours, but not less than one (1) hours, in advance of arrival; however, notice thirty (30) minutes in advance of arrival is acceptable for a Union representative coming to the Hospital to represent an employee subject to a drug and/or alcohol test.

49.2.3 Twice per month, the Hospital will give the Union access (subject to availability) to a conference room (which may be an MOB conference room if a Hospital conference room is not available at the time the Union makes the request) for the purpose of determining whether this agreement is being observed, to investigate a grievance, or for education and training:

- (a) Such sessions may last up to four (4) hours.

(b) The Union must request a room from the Director of Labor Relations or his or her designee and such request will be granted, subject to availability. Once space is reserved, the Hospital will not cancel the space (without offering alternative space sufficient for the needs of the meeting) except in the case of an emergent need for the space which would have resulted in cancellation of a departmental or human resources meeting in such space.

(c) Access to the room provided shall be limited to no more than two (2) Union representatives at a time (local or international staff and full-time elected officers of the Union), unless mutually agreed to more. Non-employees who are not associated with the Union may be permitted to attend meetings with advance notice and the agreement of the Director of Labor Relations or his or her designee.

49.2.4 Enforcement of Access Provisions. During the term of this Agreement, if the Hospital believes that Union representatives are repeatedly violating the limitations on access set forth in Sections 49.2.1, 49.2.2 and 49.2.3, the Hospital shall request and conduct within two (2) business days a meeting with representatives of the Union to discuss and attempt to informally resolve the Hospital's concerns. In the event that the Hospital's concerns are not resolved to the Hospital's satisfaction within seven (7) calendar days of its request for such a meeting, the Hospital may submit the issue to arbitration before an arbitrator mutually selected by the parties. If a Union Representative repeatedly materially or grossly interferes with the work of an employee or Hospital operations, the Hospital may revoke that Union Representative's access pending resolution with the Union an arbitrator mutually selected by the parties). Prior to revoking access, the Hospital will provide advance notice to the Union and an opportunity to discuss resolution of the issue. The same procedure shall apply in the event that the Union believes that Management representatives are repeatedly violating the Union's access and bulletin board rights. If the arbitrator determines that Union representatives have repeatedly violated the limitations on access set forth in Sections 49.2.1, 49.2.2 and/or 49.2.3, the Arbitrator will be empowered to fashion an appropriate remedy regarding the limitations or suspension of access rights for specific Union representatives. If the arbitrator determines that Management representatives have repeatedly violated the limitations on access set forth in Sections 49.2.1, 49.2.2 and/or 49.2.3, the arbitrator will be empowered to fashion an appropriate remedy sufficient to enforce these rights.

49.3 New Member Orientation.

The Hospital shall allot up to thirty (30) minutes during or at the end of general orientation for a brief information presentation by Union Representatives or Stewards to be designated by the Union. The Union's presentation will be included as an item on the new employee orientation agenda. The parties understand that the purpose of this meeting is to present non-controversial information concerning the Union to the orientees, and that management will not be present during such presentations. Orientees who chose to attend will be paid for such time at their straight time hourly rates. The Hospital will provide the Union with a schedule of general orientation sessions at least two (2) weeks in advance.

49.4 In the event the Hospital believes that the Union is repeatedly violating the prohibition against presenting controversial information during orientation, the Hospital may request an immediate meeting with representatives of the Union to discuss and attempt to informally resolve the Hospital's concerns. In the event that the Hospital's concerns are not resolved to the Hospital's satisfaction within seven (7) calendar days of its request for such a meeting, the Hospital may submit the issue to arbitration by requesting, with a copy to the Union, that the Federal Mediation and Conciliation Service submit a panel of seven (7) arbitrators having Hospital arbitration experience. The arbitrator will be selected in the same manner as set forth in Article 12. The same procedure shall apply in the event that the Union believes that Management representatives are repeatedly violating the Union's right to make presentations at orientation as set forth above. If the arbitrator determines that Union representatives have repeatedly presented controversial information during orientation, the arbitrator will be empowered to fashion an appropriate remedy regarding the limitations or suspension of the right to attend orientation for specific Union representatives. If the arbitrator determines that Management representatives have repeatedly violated the union's right to make presentations at orientation, the arbitrator will be empowered to fashion an appropriate remedy sufficient to enforce these rights.

Should this Agreement expire, the Union's access to Professional bargaining unit employees will be restricted and limited to representational activities as set forth in Article 42 (Shop Stewards) and grievance resolution as set forth in Article 12 (Grievance and Arbitration). However, such restriction will not occur if the Union has requested an extension of this Agreement of at least thirty (30) days.

ARTICLE 50

UNION SECURITY AND COPE CHECK-OFF

50.1 Payroll Deduction of Union Dues.

Upon the receipt of a signed, written authorization from an employee or a PDF of such authorization, the Hospital shall deduct from the employee's wages an amount equal to monthly union membership dues which shall be deducted in a fixed amount each pay period, regardless of the employee's membership status, and remitted to the Union. Once authorized, payroll check-off shall be irrevocable for a period of one year and automatically renewed each year thereafter, except that authorization may be withdrawn by the sending of a written notice to both the Union and Hospital by registered mail during the period of ten (10) days immediately succeeding the annual anniversary date of the employee's authorization or beyond the termination date of the applicable collective bargaining agreement, whichever occurs sooner.

Along with the deductions, the Hospital will transmit to the Union, no later than the 10th of each month, an electronic or digital standard computer importable data file in a format agreed upon by the parties (*e.g.*, comma delimited, excel, etc.) with the following information for all bargaining unit employees: first name, last name, address, city, state, zip, employee identification number, date of hire, salary or hourly wage, home phone number, department/cost center, job classification, status (full-time, part-time, VSP), shift (when available from Hospital information systems), date of birth, gender, and dues paid for the period. The file shall be transmitted in a

manner agreed upon by the parties (*e.g.*, disk, CD ROM, email, *etc.*). As technology advances, the Union reserves the right to make changes to the medium used as the standard computer database importable electronic file format and/or method of delivery.

50.2 Indemnification of Hospital.

The Union agrees to indemnify, defend and hold the Hospital harmless against any and all claims or suits that may arise out of or by reason of action taken by the Hospital in reliance upon authorization cards submitted by the Union. The Union agrees to refund to the Hospital any amounts paid to it in error on account of the payroll deduction provision, upon presentation of proper evidence of error or mistake.

50.3 Notification of Amount.

The Union will advise to the Director of Labor Relations or his or her designee, in writing, the current rate of membership dues. The Director of Labor Relations or his or her designee will be notified of any change in the rate of membership dues thirty (30) days prior to the effective date of such change.

50.4 Committee on Political Education.

The Hospital shall deduct from each employee's check an amount voluntarily authorized for the Committee on Political Education ("COPE") and submit, bi-weekly to the Union. Once the Union provides a signed, written authorized deduction form for the COPE or a PDF of such form to the Hospital, the Hospital will honor the COPE deduction by no later than the next pay period beginning after receipt of the authorization.

50.5 Continuation of Deductions After Agreement Expiration

The obligation of the Hospital to continue the deductions provided for in this Article following expiration of this Agreement shall be subject to negotiations between the Hospital and the Union, and such negotiation shall be separate from negotiations between the parties for a successor agreement. Notwithstanding any other provision of this Agreement, this Section 50.5 shall remain in effect following expiration of this Agreement.

ARTICLE 51 USE OF HOSPITAL ELECTRONIC COMMUNICATION FACILITIES

Hospital electronic communication facilities (*e.g.*, Meditech, E-mail, IMobile, WebEx, *etc.* ("Systems")) are intended to be used only for official Hospital business. Occasional use of the Hospital's Systems by employees for personal communications or messages of a non-controversial nature is permitted, so long as the communication is reasonably limited in the scope of its distribution. No personal messages shall be broadcast Hospital-wide and no messages shall be sent over the Hospital's Systems which contain statements which are critical of any individuals or of any policy, practice, or service of the Hospital or any of its affiliates.

ARTICLE 52

WAGES

52.1 Wage Step and Grade Implementation. The Hospital will implement the step and grade table set forth in Appendix A the first full pay period after ratification, with the following restrictions:

52.1.1 The first full pay period after ratification, and consistent with the wage rates set forth in Appendix A:

- a. Employees will be brought up to target step on the Year 1 Scales or receive an increase of up to seven percent (7.0%), whichever is less.
- b. Employees whose wage rates are, at the time of implementation, above or within two percent (2.0%) of the applicable step on the applicable scale will receive a two percent (2.0%) increase in the form of a rate increase (up to the applicable step rate) with the remainder in the form of a lump sum bonus (which shall be calculated using the employee's FTE hours).

52.1.2 The first full pay period of July 2026, and consistent with the wage rates set forth in Appendix A:

- a. Employees will be brought up to target step on the Year 2 Scales or receive an increase of up to seven percent (7.0%), whichever is less.
- b. Employees whose wage rates are, at the time of implementation, above or within two percent (2.0%) of the applicable step on the applicable scale will receive a two percent (2.0%) increase in the form of a rate increase (up to the applicable step rate) with the remainder in the form of a lump sum bonus (which shall be calculated using the employee's FTE hours).

52.1.3 The first full pay period of July 2027, and consistent with the wage rates set forth in Appendix A:

- a. Employees will be brought up to target step on the Year 3 Scales.
- b. Employees whose wage rates are, at the time of implementation, above or within two percent (2.0%) of the applicable step on the applicable scale will receive a two percent (2.0%) increase in the form of a rate increase (up to the applicable step rate) with the remainder in the form of a lump sum bonus (which shall be calculated using the employee's FTE hours).

52.2 Initial Placement and Progression on scale. Full and part-time employees will be placed pursuant to existing years of experience and current practice. All employees shall progress across the applicable scale based on their full years of credited experience as of the first full pay period following ratification, July 1, 2026, and July 1, 2027. No later than thirty (30) days following

ratification, full-time and part-time employees shall have the ability to contest/appeal their Years of Experience (YOE), which is determined by the verified information disclosed on the employee's application at the time of hire. No other/new information may be utilized to contest the YOE calculation. The Hospital shall respond to YOE appeals as set forth above within sixty (60) days of receipt. Clerical errors by the Hospital (*e.g.*, keystroke errors) can be raised after thirty (30) days, but any changes to credited experience shall be prospective only. Clerical errors that result in at least a full year increase to an employee's credited YOE shall also include an adjustment to that employee's compensation pursuant to Article 52 (Wages) on a prospective basis. For example, if the Hospital enters four (4) years of credited experience when it intended to enter fourteen (14), the affected employee can challenge at any time, which will result in that employee receiving fourteen (14) years of credited experience. For initial placement on the wage scale, YOE will be determined as of the date of ratification (not July 1, 2025).

52.3 PRN Rates. The first full pay period following ratification, July 2026 and July 2027, and consistent with the wage rates set forth in Appendix A, PRNs will receive rates identified in the Appendix.

52.4 Minimum Rates. All wage ranges, benefits and other economic provisions of this Agreement establish minimums, and nothing herein shall be deemed or construed to limit the Employer's right to increase wage rates, benefits, premiums and differentials, and to pay other extra compensation at the Employer's discretion in excess of those provided by this Agreement. Accordingly, it is also understood that any such increases shall be over and above the economic package negotiated in this Agreement. Before taking any action, the Hospital shall notify the Union and meet and confer over the proposed changes.

52.5 Reference Lab (737) and Blood Bank (758). Effective the first full pay period after ratification, all Medical Technologists working in the Reference Lab (Microbiology) and Blood Bank Departments who are currently eligible or who later become eligible for the Senior Medical Technologist position will be placed in such positions at the employee's request and moved to Grade S4 within two (2) full pay periods of the employee notifying the Hospital of the employee's eligibility for same.

ARTICLE 53 WEEKEND AND SHIFT DIFFERENTIALS

53.1 Evening Shift Differential.

An employee who works at least four (4) consecutive hours of a shift scheduled for 3:00 p.m. – 11:00 p.m. is eligible for an Evening Shift Differential for hours worked on the shift. The Evening Shift Differential is \$1.50 per hour and applies only to productive hours worked.

53.2 Night Shift Differential.

An employee who works at least four (4) consecutive hours of a shift scheduled for 7:00 p.m. – 7:00 a.m. or 11:00 p.m. – 7:00 a.m. is eligible for a Night Shift Differential for hours worked on the shift. The Night Shift Differential is \$2.10 per hour for regular full-time or regular part-time

employees and \$1.50 per hour for VSP employees. The Night Shift Differential applies only to productive hours worked.

53.3 Weekend Shift Differential.

An employee who works at least four (4) consecutive hours of a shift scheduled to commence on or after 11:00 p.m. Friday and end on or before 11:00 p.m. Sunday is eligible for a Weekend Shift Differential for hours worked on the shift. The Weekend Shift Differential is \$1.50 per hour and applies only to productive hours worked.

53.4 Eligibility For Differentials

An employee will not be ineligible for the differentials provided for in this Article if they were called off by the Hospital due to lack of work. For purposes of this Article, hours on a shift worked prior to and after a meal period shall be considered consecutive hours.

53.5 No Pyramiding

There shall be no pyramiding of differentials except (1) Evening Shift Differential and Night Shift Differential will be paid in combination with Weekend Shift Differential and (2) Evening Shift Differential, Night Shift Differential, and Weekend Shift Differential will be paid in combination with applicable holiday differentials.

ARTICLE 54 WORKLOAD

The Hospital is committed to the goal of equitable distribution of workload during a shift. An employee may immediately raise the issue with his or her supervisor or manager who will evaluate the issue and, where appropriate, redistribute the work. Continued concerns of inequitable distribution of work will be reviewed by the Director of Labor Relations or his or her designee and will be appropriate for consideration by the Labor Management/Patient Care Committee.

Nothing contained in this Article shall limit the Union's ability to raise concerns regarding workload distribution among different shifts with the Labor Management/Patient Care Committee.

ARTICLE 55 DURATION

This Agreement shall be effective October 3, 2025, and shall continue in effect without change, addition or amendment through June 30, 2028. This Agreement shall be automatically renewed and extended from year to year thereafter unless either party serves notice in writing on the other party at least ninety (90) days prior to the expiration date of this Agreement, or any subsequent anniversary date of same if this Agreement is automatically renewed or extended in accordance with this Article, of its intention to terminate or amend this Agreement.

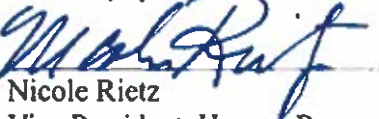
For Sunrise Hospital and Medical Center and
Sunrise Children's Hospital



Todd P. Sklamberg
Chief Executive Officer



Joan Kane, MS, PhD
Director, Labor Relations



Nicole Rietz
Vice President, Human Resources

For Nevada Service Employees Union,
SEIU Local 1107



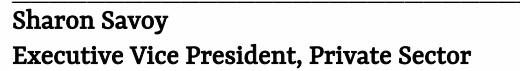
Samuel Shaw
Executive Director



Michelle Maese
President



Jody Domineck
Secretary Treasurer



Sharon Savoy
Executive Vice President, Private Sector

APPENDIX A WAGE SCALES

FFPP after Ratification (Year 1 Scale)

FFPP July 2026 (Year 2 Scale)

FFPP July 2027 (Year 3 Scale)

	<u>Grade</u>	<u>S1</u>	<u>S2</u>	<u>S3</u>	<u>S4</u>	<u>S5</u>	<u>S6</u>															<u>S1</u>	<u>S2</u>	<u>S3</u>	<u>S4</u>	<u>S5</u>	<u>S6</u>															<u>S1</u>	<u>S2</u>	<u>S3</u>	<u>S4</u>	<u>S5</u>	<u>S6</u>																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																																						
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**APPENDIX B
GRIEVANCE FORM**

Name of Grievant	Date	Department/Cost Center
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Address	Apt. #	City	State	Zip
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Home Phone	Work Phone	Classification (Job Title)
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Date of Event Giving Rise to Grievance: _____

Section(s) of the Contract Allegedly Violated: _____

Nature of Grievance: _____

Identify Specific Time, Manner, and Place of Violation: _____

Remedy Requested: _____

Signature of Grievant	Date
-----------------------	------

Signature of Union Representative	Date
-----------------------------------	------

Step 1 Submission (Director of Labor Relations or his or her designee):

Date Received

Director of Labor Relations or his or her designee

APPENDIX C
RE: ARTICLE 45 (Status of Employment)

VSP employees may participate in the following programs on the same basis as they are offered to other hourly VSP employees of the Hospital. However, administration, modification, or elimination of these programs is not subject to the grievance and arbitration provisions of this Agreement. The Hospital will provide thirty (30) days' notice of any change made to these programs by the Hospital or its parent company, and upon request of the Union, the parties agree to bargain over the effects of such change, but said bargaining will not delay implementation of the change.

- Free parking
- Free coffee in Cafeteria
- Cafeteria discounts
- Hospital services discount
- ESPP
- 401k Match
- HCA Healthcare Essential Plan
- Wellbeing Resources
- Childcare Resources
- Consumer Discounts
- Moving Assistance
- HCA Healthcare Hope Fund
- Disaster Relief Support
- Employee Recognition Programs
- Mortgage Discount
- Real Estate Rewards
- Clinical Care Pathways
- College Coach
- Sunshine Club